

TENTATIVE RULINGS

DEPT CM2

Judge Andre De La Cruz

Court Reporters: Official court reporters (*i.e.*, court reporters employed by the Court) are not provided for law and motion matters in this Department. If a party desires a record of a law and motion proceeding, it will be the party's responsibility to provide a court reporter. Parties must comply with the Court's policy on the use of privately retained court reporters, which can be found at:

- [Civil Court Reporter Pooling](#); and
- [Court Reporter Interpreter Services](#).

Tentative rulings: The Court endeavors to post tentative rulings on the Court's website no later than Wednesday afternoon immediately preceding Thursday's hearing. Moreover, tentative rulings may not be posted in every case.

Please do not call the department for tentative rulings if tentative rulings have not been posted.

The Court will not entertain a request to continue a hearing or the filing of further documents once a tentative ruling has been posted. Further, a motion may not be taken off calendar once a tentative ruling has been posted unless the entire action has been dismissed.

Submitting on tentative rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk by sending an email to: acarbajal@occourts.org. Please do not call the Department unless all parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling, and the prevailing party shall give notice of the ruling and prepare an order for the Court's signature if appropriate under Cal. R. Ct. 3.1312.

When a proposed order is required, even if motion is unopposed, the parties are ordered to submit it in two formats: (1) one draft in MS Word (*.doc or *.docx); and (2) one draft in PDF format with all attachments/exhibits attached thereto in accordance with Cal. R. Ct. 3.1312(c)(1) and (2).

Non-appearances: If nobody appears for a hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. *See Lewis v. Fletcher Jones Motor Cars, Inc.*, 205 Cal. App. 4th 436, 442 (2012), fn. 1.

Appearances: Department CM2 conducts non-evidentiary proceedings, such as law and motion, remotely, by Zoom videoconference pursuant to Code of Civil Procedure § 367.75 and Orange County Local Rule (OCLR) 375. All counsel and self-represented parties appearing for such hearings must check-in online through the Court’s website at <https://www.occourts.org/civil-remote-hearings> prior to the commencement of their hearing. Once the online check-in is completed, participants will be prompted to join the courtroom’s Zoom hearing session. Participants will initially be directed to a virtual waiting room pending the start of their specific video hearing.

It is your responsibility to ensure that your audio and video are functioning properly prior to your hearing.

Parties preferring to appear in-person for law and motion hearings may do so pursuant to Code of Civil Procedure § 367.75 and OCLR 375.

Public Access: The courtroom remains open for all evidentiary and non-evidentiary proceedings.

No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and OCLR 180.

TENTATIVE RULINGS
May 21, 2026

#	Case Name	Tentative
2.	<u>30-2025-01506069-CU-PA-NJC</u> Jee vs. Stanbury	Before the Court is a Motion for Discovery Sanctions (ROA 47). On March 18, 2026, Plaintiff Anthony Jee (“Plaintiff”) filed a Motion to Quash Subpoena directed to Defendant Gretchen Lawrence Stanbury (“Defendant”). ROA 39. On March 19, 2026, Defendant filed Motion for Monetary Sanctions against Plaintiff and Injury Law Center. ROA 47. On May 5, 2026, after further meet and confer efforts, Plaintiff withdrew Motion to Quash Subpoena and Defendant agreed to withdraw the subject subpoenas. ROA 65. Only the Motion for Discovery Sanctions is now pending. ROA 47. Defendant requests that the Court impose sanctions in the amount of \$4,500 pursuant to California Code of Civil

	Procedure Sections 2023.030(a) and 2023.010(h) for Plaintiff's alleged misuse of the discovery process. ROA 47. I. Motion for Sanctions California Code of Civil Procedure Section 2023.030 provides that "[t]he [C]ourt <i>may</i> impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, including attorney's fees, incurred by anyone as a result of that conduct." Cal. Civ. Proc. Code § 2023.030(a)(emphasis added). One example of misuse of the discovery process involves making or opposing unsuccessfully and without substantial justification, a motion to compel or limit discovery. Cal. Civ. Proc. Code § 2023.030(h). The Court finds that Plaintiff acted with substantial justification in bringing the Motion to Quash because the motion sought to limit what Plaintiff reasonably believed to be an invasion of privacy. Further, the parties ultimately resolved the dispute informally through additional meet and confer efforts, with Plaintiff withdrawing the Motion to Quash and Defendant agreeing to withdraw the subpoenas. ROA 65. Under these circumstances, the imposition of sanctions would be unjust. Accordingly, Defendant's Motion for Discovery Sanctions is DENIED. ROA 47. The Court declines to impose sanctions on Plaintiff. Plaintiff to give notice.
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3.	<u>30-2023-01355015-CU-BC-CJC</u> Consolidated Electrical Distributors, Inc. vs. Levion Construction, LLC	Plaintiff Consolidated Electrical Distributors, Inc., dba Greentech Renewables, moves for an order to enforce the written settlement agreement between it and defendants Levion Construction, LLC, Christian Macias, and Zachary Winger and enter a joint and severable judgment in its favor against them. Plaintiff also seeks an award of attorneys' fees and costs incurred in connection with this motion. A review of the Register of Actions for this case shows that it does not include any proofs of service for the summons and complaint on the defendants. Nor does it show any pleadings responding to the complaint filed by them. Defendants did, however, sign the settlement agreement that plaintiff included with the motion. According to the proof of service filed with the moving papers, plaintiff served copies of those papers on the defendants by mail and email. However, there is no explanation as to where the addresses and email addresses came from, and the settlement agreement does not appear to have any section regarding where notices to the defendants are to be given or otherwise setting forth their addresses. Thus, plaintiff's counsel should be prepared to address issues regarding service to ensure due process was given. Assuming plaintiff can show service was proper, Code of Civil Procedure section 664.6 provides as follows in subdivision (a): If parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If the parties to the settlement agreement or their counsel stipulate in writing or orally before the court, the court may dismiss the case as to the settling parties without prejudice and retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement. Plaintiff has shown that the parties entered into a written
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		settlement agreement during the pendency of this action as well as a stipulation for judgment as enforcement of the agreement. Plaintiff has also shown that the agreement contains an attorneys' fees provision and that counsel has and will spend about ten (10) hours of time in connection with the motion. Accordingly, and assuming service is appropriately addressed, the motion of plaintiff Consolidated Electrical Distributors, Inc., dba Greentech Renewables, for an order to enforce the written settlement agreement between it and defendants Levion Construction, LLC, Christian Macias, and Zachary Winger through the entry of a joint and severable judgment against them is GRANTED. Plaintiff's request for attorneys' fees of \$3,000 and costs of \$60 is also GRANTED. Plaintiff to give notice.
4.	<u>30-2025-01476678-CU-OE-NJC</u> Hernandez vs. OC & Lau, Inc.	Before the Court are two (2) motions: Motion to Compel Further Responses to Request for Production (ROA 63) and Motion to Compel Further Responses to Special Interrogatories, Set One (ROA 64). On January 8, 2026, Plaintiff Esiquio Hernandez ("Plaintiff") filed the instant Motions against Defendant OC & Lau, Inc., ("Defendant"). ROAs 63, 64. I. Violation of Court Order Under California Code of Civil Procedure Section 2023.010, disobeying a court order to provide discovery is a misuse of the discovery process and is sanctionable conduct. Cal. Civ. Proc. Code § 2023.010. On February 9, 2026, the Court ordered Defendant to supplement responses to Request for Production to include reference to existence or non-existence of responsive documents by no later than March 11, 2026. ROA 83. Defendant failed, without explanation, to supplement the responses by March 11, 2026. ROA 94. Accordingly, sanctions against Defendant in the amount of \$400 are appropriate for this violation.

II. Motion to Compel and Meet and Confer Requirements

California Code of Civil Procedure Section 2030.300 allows a propounding party to move for an order compelling a further response if the propounding party deems an answer to a particular interrogatory to be evasive or incomplete; an exercise of the option to produce documents under Section 2030.230 is unwarranted or the required specification of those documents is inadequate; or an objection to an interrogatory is without merit or too general. Cal. Civ. Proc. Code § 2030.300.

Likewise, under California Code of Civil Procedure Section 2031.310, the demanding party may move for an order compelling a further response to the demand if the demanding party deems that any statement of compliance with the demand is incomplete; a representation of inability to comply is inadequate, incomplete, or evasive; or an objection is without merit or too general. Cal. Civ. Proc. Code § 2031.310(a)(1), (2), (3).

When bringing a motion to compel further responses interrogatories or a motion to compel further responses to request for production the motion must be accompanied by a meet and confer declaration. *See* Cal. Civ. Proc. Code §§ 2030.300(b)(1); 2031.310 (b)(2).

The Court finds that Plaintiff engaged in sufficient meet and confer efforts with Defendant; however, the supporting declarations are deficient because they do not state whether the parties met and conferred, including through electronic communication, regarding the retention of a certified shorthand reporter for the hearing on the motion, as required by Code of Civil Procedure section 2016.040(b). Accordingly, the meet and confer declarations do not comply with statutory requirements, and denial is warranted on this procedural ground.

III. Mandatory Sanctions

The Court shall impose a monetary sanction against any

	party, person, or attorney who unsuccessfully <i>makes</i> or opposes a motion to compel a further response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. Cal. Civ. Proc. Code § 2030.300. The term “substantial justification” means “a justification that ‘is clearly reasonable because it is well grounded in both law and fact.’” <i>In re Marriage of Moore</i>, 102 Cal. App. 5th 1275, 1287 (2024) (quoting <i>Doe v. U.S. Swimming, Inc.</i>, 200 Cal. App. 4th 1424, 1434 (2011)). To avoid sanctions, a party may show “substantial justification” for his or her position—<i>i.e.</i>, a rational basis to conclude that the party's failure to fulfill its discovery obligations was justified. <i>Pollock v. Super. Ct.</i>, 93 Cal. App. 5th 1348, 1358 (2023) (citing <i>Foothill Properties v. Lyon/Copley Corona Associates</i>, 46 Cal. App. 4th 1542, 1557 (1996)); <i>see also</i> Cal. Civ. Proc. Code § 2030.090(d); <i>U.S. Swimming, Inc.</i>, <i>supra</i>, 200 Cal. App. 4th at 1435. The Court “must make an explicit finding this exception exists,” however, “the court <i>need not</i> make an explicit finding the exception does not exist” <i>Parker v. Wolters Kluwer U.S., Inc.</i>, 149 Cal. App. 4th 285, 294 (2007) (emphasis added). In light of Plaintiff’s lack of substantial justification for failing to satisfy all statutory meet and confer requirements, sanctions in the amount of \$200 against Plaintiff’s counsel, Rudy Ginez, are appropriate. Accordingly, Plaintiff’s Motion to Compel Further Responses to Request for Production (ROA 63) and Motion to Compel Further Responses to Special Interrogatories, Set One (ROA 64) are DENIED. The Court IMPOSES sanctions in the amount of \$400 against Steve W. Pornbida, due and payable to the Orange County Clerk of the Court within thirty (30) days of receiving notice.
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		Additionally, the Court IMPOSES sanctions in the amount of \$200 against Rudy Ginez due and payable to Bailey Law Corporation within thirty (30) days of receiving notice. Clerk to give notice.
5.	<u>30-2025-01467967-CU-PO-CJC</u> Doe vs. Agrawal	No tentative ruling.
6.	<u>30-2023-01341633-CU-BT-CJC</u> Altinex, Inc. vs. Breda	Defendant Silvano Breda specially appears in this action and moves “for an order setting aside the default and default judgment against him and [quashing] service of the Summons and Complaint filed by Plaintiff Altinex, Inc.” <i>See</i> notice of motion, ROA 54, at 2:5-6. Defendant contends that the default judgment is void and should be set aside under Code Civ. Proc. § 437(d) because the Court lacks personal jurisdiction over him and the judgment exceeds the amount requested in the complaint. Notice of motion, 2:7-10. He also contends that service of the summons and complaint should be quashed under Code Civ. Proc. § 418.10(a)(1) because the Court lacks personal jurisdiction over him. Notice of motion, 2:11-12. Plaintiff opposes the motion. Plaintiff requested and obtained defendant’s default on November 7, 2024. <i>See</i> ROA 29. Plaintiff had earlier filed a declaration of its counsel in which counsel declared that defendant had been served in Canada under the Hague Convention on August 20, 2024 and submitted a copy of the Certification of Service. <i>See</i> ROA 25.

The Court entered default judgment for \$215,829.92 against defendant on March 10, 2025. ROA 49. Plaintiff subsequently filed a notice of entry of judgment on March 13, 2025. ROA 46.

To the extent that defendant moves to both set aside the default and default judgment and to quash service of the summons and complaint, the motion is procedurally improper. After the clerk enters default against a defendant, the defendant cannot file an answer or any motion other than a motion for relief from default. *In re Marriage of Nurie*, 176 Cal. App. 4th 478, 495 (2009), fn. 16. *See also Devlin v. Kearny Mesa AMC/Jeep/Renault, Inc.*, 155 Cal. App. 381, 385 (1984).

Thus, the motion before the Court is simply a motion to set aside the default and default judgment, rather than a combined motion to set aside the default and default judgment and to quash service. *See Strathvale Holdings v. E.B.H.*, 126 Cal. App. 4th 1241, 1249 (2005) (holding that a motion brought under Code Civ. Proc. § 473(d) is the proper procedure of direct attack against a default supported by evidence of service of process but challenged for lack of personal jurisdiction).

Subdivision (d) of section 473 provides that “[t]he court may, . . . on motion of either party after notice to the other party, set aside any void judgment or order.” The statute permits a void judgment or order to be set aside without any mention of a time limit. *See Heidary v. Yadollahi*, 99 Cal. App. 4th 857, 862 (2002). An order or judgment is void if a court “lack[s] fundamental authority over the subject matter, question presented, or party.” *In re Marriage of Goddard*, 33 Cal. 4th 49, 56 (2004).

Where, as here, the defendant challenges personal jurisdiction, “the plaintiff has the initial burden of ‘demonstrating facts justifying the exercise of jurisdiction.’” *Strathvale Holdings v. E.B.H.*, *supra*, 126 Cal. App. 4th at 1250. If the plaintiff meets that burden, it then shifts to the defendant to show the exercise of personal jurisdiction would be unreasonable. *Vons Companies, Inc. v. Seabest*

	<i>Foods, Inc.</i>, 14 Cal. 4th 434, 476 (1996). California's long-arm statute authorizes California courts to exercise jurisdiction on any basis not inconsistent with the Constitution of the United States or the Constitution of California. <i>Vons Companies, Inc. v. Seabest Foods, Inc.</i>, <i>supra</i>, 14 Cal. 4th at 444. A state court's assertion of personal jurisdiction over a nonresident defendant who has not been served with process within the state comports with the requirements of the due process clause of the federal Constitution if the defendant has such minimum contacts with the state that the assertion of jurisdiction does not violate "'traditional notions of fair play and substantial justice.'" <i>Id.</i> at 444-445. Personal jurisdiction may be either general or specific. <i>Vons Companies, Inc. v. Seabest Foods, Inc.</i>, <i>supra</i>, 14 Cal. 4th at 445. A nonresident defendant may be subject to the general jurisdiction of the forum if his or her contacts in the forum state are substantial, continuous, and systematic. <i>Id.</i> In such a case, "it is not necessary that the specific cause of action alleged be connected with the defendant's business relationship to the forum." <i>Id.</i> at 445-446. Such a defendant's contacts with the forum are so wide-ranging that they take the place of physical presence in the forum as a basis for jurisdiction. <i>Id.</i> at 446. If the nonresident defendant does not have substantial and systematic contacts in the forum sufficient to establish general jurisdiction, he or she still may be subject to the specific jurisdiction of the forum, if the defendant has purposefully availed himself or herself of forum benefits and the "controversy is related to or 'arises out of' a defendant's contacts with the forum." <i>Vons Companies, Inc. v. Seabest Foods, Inc.</i>, <i>supra</i>, 14 Cal. 4th at 446. The forum contacts necessary to establish specific jurisdiction generally a nonresident who has "purposefully directed" his or her activities at forum residents or who has "purposefully derived benefit" from forum activities or "'purposefully avail[ed himself or herself] of the privilege of conducting activities within the forum State, thus invoking the benefits and protections of its laws.'" <i>Vons Companies,</i>
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	<i>Inc. v. Seabest Foods, Inc., supra</i>, 14 Cal. 4th at 446. The requisite forum contact may also involve a nonresident defendant who “‘deliberately’ has engaged in significant activities with a State [citation] or has created ‘continuing obligations’ between himself and residents of the forum.” <i>Id.</i> In the declaration filed with the moving papers (ROA 52), defendant declares that he was born and grew up in Italy and then emigrated to Canada. He declares that he has never been a resident of California, has never conducted business or been employed in California, never owned any property in California, never voted in California and has never held any California licenses of any sort. Declaration, 2:15-17. He also declares that he did not travel to California during the negotiations for the sale of the assets of his company, Omni Brass. Declaration, 2:17-18. In opposing the motion, plaintiff submits the declarations of Jack Gershfeld, Victoria Alayeva, and Vladi Khiterer, who are its CEO, employee project manager, and counsel, respectively. ROAs 61, 60, and 62. In his declaration, Mr. Gershfeld declares that, between September 2021 through January 2023, he and defendant “engaged in intense and frequent communications via phone, e mail and in person in regards to the acquisition of Omni Brass by Altinex.” Gershfeld declaration, 2:2-26. He declares that when the defendant learned that he was located in Orange County, defendant told him that he had numerous customers in Orange County, that he maintained ongoing business relationships with them, and that he occasionally traveled to California to meet with them. Gershfeld declaration, 3:1-4. He additionally declares that, in October 2022, defendant approached him with a business proposal that was unrelated to Omni Brass and involved a joint venture for the manufacture and sale of a product in California. Gershfeld declaration, 5:5-11. In her declaration, Ms. Alayeva declares that, between April 2022 through December 2022, she communicated directly with defendant regarding documentation for the purported product lines for Omni Brass. Alayeva declaration, 2:6-8.
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	She also submits copies of the emails and attachments to her declaration as Exhibit 4. In his declaration, plaintiff's counsel declares that, after retaining a private investigator in Canada to locate defendant's residence, plaintiff was able to serve him with the summons and complaint under The Hague Convention. Khiterer declaration, 2:3-8. He also declares that he reviewed publicly available information about companies that defendant identified as customers, and found that several were located in California. Khiterer declaration, 14-19. He additionally declares that defendant indicated to him that he wanted to be employed by plaintiff and that he negotiated an agreement by which plaintiff would be retained as a consultant on a part-time basis. Khiterer declaration, 4:14-24. Defendant does not offer any additional evidence with his reply to the opposition, although he does submit written objections to the declarations submitted by plaintiff. Defendant contends both that plaintiff did not meet its burden of establishing facts supporting either general or specific jurisdiction over him and that exercise of personal jurisdiction would be unreasonable. He contends that he is "an elderly individual residing in Canada" and "should not be burdened with the expense of litigating against a California corporation on its home turf over a potential transaction initiated by Plaintiff but took place [<i>sic</i>] in Canada pursuant to the LOI [letter of intention]." Reply, ROA 66, 8:2-5. Contrary to the arguments in the Reply, the evidence submitted by plaintiff is sufficient to show facts supporting specific personal jurisdiction over defendant. Through his communications and business discussions with plaintiff's personnel and doing business with other California companies, plaintiff "purposefully directed" activities at California residents or purposefully availed himself of the privilege of conducting activities within California. The complaint, which contains causes of action for misrepresentation and violation of the UCL, arises out of those activities. Moreover, assertion of personal jurisdiction over defendant comports with notions of fair play and
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		substantial justice. As a result, the Court cannot determine that the California does not lack personal jurisdiction over defendant such that the default judgment is void. To the extent that defendant contends that the default judgment is void because it exceeds the amount of relief sought in the complaint, plaintiff concedes that the complaint only sought damages of \$45,000, but denies that the judgment is void, citing <i>Greenup v. Rodman</i>, 42 Cal. 3d 822, 839 (1986). Plaintiff is correct; the cited case indicates that an amended judgment is the appropriate remedy where the amount of the default judgment exceeds that sought in the complaint. Accordingly, the motion of specially appearing defendant Silvano Breda for an order setting aside the default and default judgment entered against him on the complaint of plaintiff Altinex, Inc., and quashing service of the summons and complaint is DENIED. The Court will, however, reduce the amount of the default judgment entered against defendant to \$45,000 so that it does not exceed the amount of damages sought by the complaint. The Court sustains defendant's objections 1 and 2 to the Gershfeld declaration and objection 8 to the Khiterer declaration and overrules all other objections. Plaintiff to give notice.
7.	<u>30-2023-01363921-CU-WT-CJC</u> Manalese vs. Las Flores Internet, LLC	Before the Court are the following four (4) motions brought by Plaintiff Karlina Manalese ("Plaintiff") against Defendant Las Flores Internet, LLC, dba Strikeworks Solutions ("Defendant"): a Motion to Compel Further Responses to Requests for Production ("MF-RFP"), Set Two, and Sanctions (ROA 224); a Motion to Compel Further Responses to Special Interrogatories ("MF-SROG"), Set Two, and Sanctions (ROA 228); an MF-RFP, Set Three, and Sanctions (ROA 259); and an MF-SROG, Set Three, and Sanctions (ROA 263). The underlying complaint seeks damages for multiple

	claims, including workplace discrimination, harassment, retaliation, sexual battery, wrongful termination, breach of contract, and unfair competition. ROA 15. Plaintiff seeks an order, pursuant to California Code of Civil Procedure Section 2031.310, compelling Defendant to provide further verified, code compliant responses to Plaintiff's Requests for Production ("RFP"), Set Two, Nos. 73-85, and imposing monetary discovery sanctions upon Defendant in the amount of \$3,580 for the expenses and attorney's fees incurred by Plaintiff in making their MF-RFP, Set Two. ROA 224, pp. 1-2; ROA 218, p.2. Plaintiff also seeks an order, pursuant to California Code of Civil Procedure Section 2030.300, compelling Defendant to provide further verified, code compliant responses to Plaintiff's Special Interrogatories ("SROG"), Set Two, Nos. 28-34, 41, 42, 44, 46-49, 51, and 54-58, and imposing monetary discovery sanctions upon Defendant in the amount of \$3,580 for the expenses and attorney's fees incurred by Plaintiff in making their MF-SROG, Set Two. ROA 228, pp. 1-2. Additionally, Plaintiff seeks an order, pursuant to California Code of Civil Procedure Section 2031.310, compelling Defendant to provide further verified, code compliant responses to Plaintiff's RFP, Set Three, Nos. 85-91, 93, and 98-99, and imposing monetary discovery sanctions upon Defendant in the amount of \$3,580 for the expenses and attorney's fees incurred by Plaintiff in making their MF-SROG, Set Three. ROA 259, pp. 1-2. Finally, Plaintiff seeks an order, pursuant to California Code of Civil Procedure Section 2030.300, compelling Defendant to provide further verified, code compliant responses to Plaintiff's SROG, Set Three, Nos. 61, 69, and 71, and imposing monetary discovery sanctions upon Defendant in the amount of \$3,580 for the expenses and attorney's fees incurred by Plaintiff in making their MF-SROG, Set Two. ROA 255, p.2. In total, Plaintiff seeks \$14,320.00 in monetary discovery sanctions.
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		Defendant requests that the Court deny Plaintiff's MF-RFP, Set Two, and instead award sanctions to Defendant in the amount of \$5,670.00 for the costs borne by Defendant in opposing Plaintiff's motion. ROA 279, p.18. Defendant also requests that the Court deny Plaintiff's MF-SROG, Set Two, and instead award sanctions to Defendant in the amount of \$9,187.50 for the costs borne by Defendant in opposing Plaintiff's motion. ROA 267, p.18. Additionally, Defendant requests that the Court deny Plaintiff's MF-RFP, Set Three, and instead award sanctions to Defendant in the amount of \$5,512.00 for the costs borne by Defendant in opposing Plaintiff's motion. ROA 350, ¶ IV. Finally, Defendant requests that the Court deny Plaintiff's MF-SROG, Set Three, and instead award sanctions to Defendant in the amount of \$3,412.50.00 for the costs borne by Defendant in opposing Plaintiff's motion. ROA 358, ¶ IV. In total, Defendant seeks \$23,782.00 in monetary discovery sanctions. Meet and Confer Requirements re: Motions to Compel Further Responses to Discovery Requests The meet and confer requirement is intended to promote the public policy of judicial economy and to encourage the informal resolution of discovery disputes. <i>Townsend v. Super. Ct.</i>, 61 Cal. App. 4th 1431, 1434-35 (1998) (<i>citing DeBlase v. Super. Ct.</i>, 41 Cal. App. 4th 1279, 1284 (1996)); see Cal. Civ. Proc. Code § 2023.010(i) (failing to meet and confer or failing to make an attempt to meet and confer, either in person, by phone, or by videoconference, is subject to sanctions when a meet and confer declaration is required by statute). Parties' obligation to meet and confer under the California Rules of Civil Procedure arises only after responses are contested or upon a motion for a protective order. Cal. Civ. Proc. Code §§, 2030.090(a), 2030.300(b)(1), 2031.060(a),
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	2031.310(b)(2). Both statute and case law demand a reasonable, good faith effort by the moving party to meet and confer before submitting a motion to compel further responses. Cal. Civ. Proc. Code §§ 2016.040 (“[a] meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt . . . to informally resolve each issue presented by the motion.”), 2030.300(b), 2031.310(b)(2); <i>In re Marriage of Moore</i>, 102 Cal. App. 5th 1275, 1298-99 (2024) (“in order to bring a motion to compel discovery, the propounding party must first engage in reasonable and good faith attempts at informal resolution . . .”). Defendant argues that Plaintiff has not satisfied the statutory meet and confer requirements. ROA 279, ¶ IIIA; ROA 350, ¶ IIC. Plaintiff’s Set Two Discovery Requests On April 30, 2024, Defendants produced a privilege log. ROA 252, ¶ 7. The Court notes that the privilege log is not on the record. On September 3, 2024, the parties entered a protective order governing the handling of confidential information. ROA 216, ¶ 6. On April 3, 2025, Plaintiff propounded Set Two RFP and SROG upon Defendant. ROA 281, ¶ 9. On May 6, 2025, Defendant served initial responses to Plaintiff’s SROG and RFP, Set Two, by electronic means. ROA 216, ¶10. On May 16, 2025, Plaintiff sent an email to Defendants, accusing Defendants of “playing games” and identifying to which specific Set Two SROGs and RFPs Plaintiff requests supplemental responses. ROA 216, p.63. On May 21, 2025, the parties again corresponded over email regarding Plaintiff’s dissatisfaction with Defendant’s responses to Plaintiff’s Set Two discovery requests. ROA 216, pp. 63-65. Therein, Defendant claimed that Plaintiff’s
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	meet and confer efforts were insufficient and declared that Defendant would not agree to an extension for Plaintiff's deadline to file motions to compel Defendant's further responses. <i>Id.</i> On May 22, 2025, Plaintiff offered to meet and confer by telephone to discuss Plaintiff's issues with Defendant's responses to Plaintiff's Set Two discovery requests. ROA 216, p.73. On May 28, 2025, the parties corresponded again over email. ROA 216, pp. 82-83. Plaintiff again requested an extension of the deadline to file motions to compel further responses so that the parties could conduct an IDC. <i>Id.</i> Defendant reiterated its position that Plaintiff's meet and confer efforts were insufficient because Plaintiff failed to specify how Defendant's responses were not code compliant. <i>Id.</i> On that basis, Defendant maintained it could not provide supplemental responses. <i>Id.</i> On June 13, 2025, Plaintiff again sent an email requesting supplemental responses to Plaintiff's Set Two discovery requests (SROG and RFP). ROA 216, p.88. On June 20, 2025, Plaintiff filed an MF-PROD, Set Two, and an MF-SROG, Set Two. ROA 224, 228. Pursuant to the foregoing, the Court finds that Plaintiff has satisfied the statutory meet and confer requirement for Plaintiff's Set Two discovery requests. Plaintiff's Set Three Discovery Requests On July 9, 2025, Plaintiff propounded RFP and SROG, Set Three, upon Defendant. ROA 356, ¶ 9. On August 12, 2025, Defendant served initial responses to Plaintiff's Set Three discovery demands. ROA 356, ¶ 9. On September 12, 2025, Plaintiff provided Defendants with a letter identifying Defendant's alleged noncompliant responses to Plaintiff's Set Three discovery demands. ROA 252, ¶ 10(a).
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	On September 15, 2025, Defendant agreed to extend Plaintiff's deadline to file a motion to compel further responses to Plaintiff's Set Three discovery demands to October 20, 2025. ROA 252, ¶ 10(b). On September 19, 2025, Defendant responded to Plaintiff's letter. ROA 252, ¶ 10(c). On September 23, 2025, the parties discussed supplemental responses to Plaintiff's Set Three discovery demands via email, and Defendant indicated they would supplement one response. ROA 252, ¶ 10(d). On October 9, 2025, Defendant agreed to extend Plaintiff's deadline to file a motion to compel further responses to Plaintiff's Set Three discovery demands to October 30, 2025. ROA 252, ¶ 10(e). On October 9, 2025, Defendant served supplemental responses to Plaintiff's SROG, Set Three. ROA 356, ¶ 9. On October 26, 2025, the parties corresponded over email regarding Plaintiff's Set Three discovery demands. ROA 252, ¶ 10(f). On October 27, 2025, Defendant indicated that they would not provide further responses to Plaintiff's Set Three discovery requests, but that they would provide responsive documents. ROA 252, ¶ 10(g). On October 29, 2025, Defendant produced responsive documents to Plaintiff's RFP, Set Three. ROA 252, ¶ 10(h). Through email correspondence, Defendant denied Plaintiff's request for an additional extension to the deadline to file motions to compel as to Plaintiff's Set Three discovery, and reiterated that Defendant would not provide additional responses. ROA 252, ¶¶ 10(i)-(j). On October 30, 2025, Plaintiff filed their MF-RFP, Set Three, and MF-SROG, Set Three. ROAs 259, 263. The Court finds that Plaintiff has satisfied the statutory meet and confer requirements with respect to Plaintiff's Set
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		Three discovery motions. Good Cause Showing re: Motions to Compel Further Responses to Request for Production California Code of Civil Procedure Section 2031.310 requires the party seeking to compel further responses to requests for production to “set forth specific facts showing good cause justifying the discovery sought by the demand.” Cal. Civ. Proc. Code § 2031.310(b)(1). To establish good cause, the moving party must satisfy the following requirements set out by the Second District Court of Appeal in <i>Williams v. Superior Court</i>: first, they “must identify a disputed fact that is of consequence in the action[;]” second, they must explain how “the discovery sought will [either] tend in reason to prove or disprove that fact[;]” or will “lead to other evidence that will tend to prove or disprove the fact.” <i>Williams v. Super. Ct.</i>, 187 Cal. Rptr. 3d 321, 325 (2015) (previously published at 236 Cal. App. 4th 1151); see <i>Calcor Space Facility, Inc. v. Super. Ct.</i>, 53 Cal. App. 4th 216, 224 (1997) (vacating an order compelling production where the moving party failed to present “specific facts relating to each category of materials sought to be produced;” offered “mere generalities” as justification for the production; and did not provide “focused, fact-specific justifications for [their] demands.”). a. Plaintiff’s RFP, Set Two, No. 73 Plaintiff’s RFP, Set Two, No. 73 seeks “[a]ll COMMUNICATIONS between Plaintiff and Drew Woodruff.” ROA 218, p.2. As justification for a further response, Plaintiff contends that the parties disagree as to whether Plaintiff was terminated as a result of Defendant’s financial constraints. ROA 218, p.2, ll. 17-19. Plaintiff further argues that the production of communications between Plaintiff and Defendant’s Person Most Knowledgeable (“PMK”), Drew Woodruff, is likely to lead to “underlying supportive documents including bank statements to support its position . . . as well as underlying records used to create the profit and loss statement . . .” <i>Id.</i>
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	The Court fails to decipher how communications between the Defendant's PMK and Plaintiff would reasonably lead to the discovery of the types of supporting materials sought in justification for this request. Thus, the Court finds that Plaintiff has <i>not</i> shown good cause for Defendant's further response to Plaintiff's RFP, Set Two, No. 73. Plaintiff's RFP, Set Two, No. 74, 82-84 Plaintiff offers the same justification for a further response to RFP, Set Two, Nos. 74, and 82-84, as that set forth for RFP Set Two, No. 73, above. ROA 218. Thus, the Court finds that Plaintiff's justification in these instances does <i>not</i> present good cause for Defendant's further response to Plaintiff's RFP, Set Two, Nos. 74 and 82-84. Plaintiff's RFP, Set Two, Nos. 75-81, and 85 Plaintiff offers the same justification for a further response to that set forth for RFP Set Two, No. 73, above. ROA 218. The Court finds that, as to these requests, Plaintiff's justification <i>does</i> show good cause for Defendant's further response to Plaintiff's RFP, Set Two, Nos. 75-81, and 85. Plaintiff's RFP, Set Three, No. 85 Plaintiff's RFP, Set Three, No. 85 requests "[a]ll DOCUMENTS identified by YOU [<i>sic</i>] Special Interrogatory Set 3 Responses." ROA 250, p.2. As good cause to compel production, Plaintiff argues that "Defendant has placed its financial condition at issue" and that "[t]he workers [<i>sic</i>] compensation investigative file is not subject to any privilege." <i>Id.</i> Plaintiff fails to articulate how the requested discovery will lead, in reason, to prove or disprove Defendant's financial condition. Additionally, it is not clear precisely what Plaintiff's request encompasses. Consequently, Plaintiff fails to make a good cause showing to compel a further response to Plaintiff's RFP, Set Three, No. 85. Plaintiff's RFP, Set Three, No. 86
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		Plaintiff's RFP, Set Three, No. 86 demands "[a]ll COMMUNICATIONS between Victor Villanueva and Andrew Quillares from May 2, 2023, to present." ROA 250, p.4. As good cause justifying an order to compel a further response, Plaintiff argues that "[g]ood cause exists because documents of the kind do exist" and that the parties disagree as to whether the communications in fact exist. ROA 250, p.6. Plaintiff fails, however, to articulate why the existence of these communications is a fact of consequence to the underlying dispute. Consequently, Plaintiff has <i>not</i> shown good cause to compel a further response to Plaintiff's RFP, Set Three, No. 86. Plaintiff's RFP, Set Three, Nos. 87-91, 93, and 99 For Plaintiff's RFP, Set Three Nos. 87-91, 93, and 99, the Court finds that Plaintiff's separate statement fails to identify a disputed fact of consequence that the requests would, in reasons, tend to prove or disprove. Consequently, Plaintiff has not satisfied the good cause showing required to compel a further response to Plaintiff's RFP, Set Three, Nos. 87-91, 93, and 99. Plaintiff's RFP, Set Three, No. 98 Plaintiff's RFP, Set Three, No. 98, requests that Defendant produce Defendant's "bank statements from March 2023 to July 2023." ROA 250, p.13. As justification for good cause to compel a further response, Plaintiff argues that Defendant's financial condition is a disputed fact in consequence with respect to Plaintiff's claims for disability discrimination, and that the discovery sought would tend to prove whether Defendant's financial condition is a justified rationale for terminating the Plaintiff. ROA 250, p.14. Thus, Plaintiff <i>has</i> shown good cause to compel Defendant's further response to Plaintiff's RFP, Set Three, No. 98. Code Compliant Responses to Requests for Production Responses to requests for production must take the form of either (i) an agreement to comply, (ii) a representation of
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	inability to comply, or (iii) objections. Cal. Civ. Proc Code § 2031.210(a). An agreement to comply is a statement that the party will comply with the demand by the specified date. Cal. Civ. Proc. Code § 2031.210(a). The response must be specific as to what is agreed and must state both: (i) that the production or inspection will be permitted in whole or in part; and (ii) that the items demanded that are in the responding party's custody or control, which are not subject to objections, will be produced. Cal. Civ. Proc. Code § 2031.220. Compliance requires that the responding party produce the documents specified in the demand on the date specified, and identify any documents produced with the specific request number to which they respond. Cal. Civ. Proc. Code § 2031.280(a)(b). A statement that the responding party is unable to comply with the demand for production must: (i) affirm that the responding party conducted a diligent search and a reasonable inquiry in an effort to locate the demanded item; and (ii) state the reason the party is unable to comply. Cal. Civ. Proc. Code § 2031.230. Acceptable reasons include that "the particular item or category has never existed, has been destroyed, has been lost, misplaced, or stolen, or has never been, or is no longer, in the possession, custody, or control of the responding party. <i>Id.</i> If the responding party either knows or believes that another party has possession, custody, or control of the demanded item, the responding party must state the name and address of said party. <i>Id.</i> A responding party who objects to any item or category requested for production, either in whole or in part, must: (i) identify with particularity the specific document or information demanded to which the responding party objects; and (ii) set forth the specific ground for objection. Cal. Civ. Proc. Code § 2031.240(b). If only part of an item or category of a demand is objectionable, the responding party must provide either a statement of compliance or inability to comply as to the remainder. Cal. Civ. Proc. Code § 2031.040(a).
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		Objections on the grounds that a discovery request is vague or ambiguous are valid “only if the question or request is wholly unintelligible or precludes an intelligent reply.” Cal. Judges Benchbook: Civil Proceedings-Discovery § 5.5. “The objection of [undue] burden is valid only when that burden is <i>demonstrated</i> to result in injustice. <i>West Pico Furniture Co. v. Super. Ct.</i>, 56 Cal. 2d 407, 418 (1961) (emphasis added). To make this showing, a party opposing discovery must make “a factual showing to the trial court of the nature and extent of the trouble and expense which would [] [be] entailed in responding to the request for discovery”, and “that the ultimate effect of the burden is incommensurate with the result sought.” <i>Mead Reinsurance Co. v. Super. Ct.</i>, 188 Cal. App. 3d 313, 321 (1986) (quoting <i>West Pico</i>, <i>supra</i>, 56 Cal. 2d at 417). A discovery request may be deemed overly broad if it imposes an undue burden, seeks irrelevant information, or constitutes a serious intrusion into protected privacy interests. Cal. Judges' Benchbook Civ. Proc. Discovery § 5.5; <i>Lopez v. Watchtower Bible & Tract Soc’y of N.Y., Inc.</i>, 246 Cal. App. 4th 566, 578-79 (2016) (rejecting a responding party's overbreadth objections for failure to support their claims that the request would impose an enormous administrative burden). To sustain an objection on the grounds that a discovery request is irrelevant to the subject matter, a party must show that the “line of questioning cannot, as a reasonable possibility, lead to the discovery of admissible evidence or be helpful in preparation at trial.” <i>Pacific Tel. & Tel. Co. v. Super. Ct.</i>, 2 Cal. 3d 161, 173 (1970). “For discovery purposes, information is relevant if it might reasonably assist a party in <i>evaluating</i> the case, <i>preparing</i> for trial, or <i>facilitating</i> settlement.” <i>Gonzalez v. Super. Ct.</i>, 33 Cal. App. 4th 1539, 1546 (1995) (italics original, internal quotes omitted.); <i>Pacific Tel.</i>, <i>supra</i>, 2 Cal. 3d at 173. “Admissibility is not the test and information[,] unless privileged, is discoverable if it might reasonably lead to admissible evidence.” <i>Lopez</i>, <i>supra</i>, 246 Cal. App. 4th at 591. “[D]oubts
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		as to relevance should generally be resolved in favor of permitting discovery.” <i>Pacific Tel.</i>, <i>supra</i>, 2 Cal. App. 3d at 173. The California Constitution expressly protects an individual’s right to privacy. Cal. Const., art. I, § 1. “Where ‘a discovery request seeks information implicating the constitutional right of privacy’ the party seeking discovery must make a showing of need greater than that needed for discovery requests generally.” <i>Cnty. of L.A. v. Super. Ct.</i>, 65 Cal. App. 5th 621, 629 (2021) (<i>quoting Williams, supra</i>, 3 Cal. 5th at 556). When considering these factors, courts apply a balancing test: the <i>opposing party</i> must demonstrate a protected privacy interest, a reasonable expectation of privacy, and a serious intrusion. <i>Hill v. Nat’l Collegiate Athletic Ass’n</i>, 7 Cal. 4th 1, 35-39 (1994); <i>Williams, supra</i>, 3 Cal. 5th at 552-60. The burden then shifts to the propounding party to show legitimate countervailing interests. <i>Williams, supra</i>, 3 Cal. 5th at 552. Courts balance those interests and may impose protective measures. <i>Id.</i> Where there is no serious invasion of a privacy interest, a Court is not required to balance the privacy interests of the objectors or objecting party against the discovery interests of the propounding party. <i>Alch v. Super. Ct.</i>, 165 Cal. App. 4th 1412, 1427 (2008) (<i>citing Pioneer Electronics (USA), Inc. v. Super. Ct.</i>, 40 Cal. 4th 360, 371 (2007)). Additionally, “[I]f the intrusion is limited[,] and confidential information is carefully shielded from disclosure except for those who have a legitimate need to know, privacy concerns are assuaged.” <i>Pioneer, supra</i>, 40 Cal. 4th at 371. The Supreme Court of California has recognized that “the right of privacy extends to one’s confidential financial affairs.” <i>Valley Bank of Nev. v. Super. Ct.</i>, 15 Cal. 3d 652, 656 (1975). However, an important qualification to <i>Valley Bank</i> is that it more accurately stands for the proposition that a person has a reasonable expectation that a <i>financial institution</i> with whom a party shares a confidential
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	relationship will not divulge that person's confidential information absent <i>compulsion by legal process</i>. <i>Id.</i> at 657. Thus, a person does not have a reasonable expectation of privacy in their financial affairs in all circumstances. <i>Garrabrants v. Erhart</i>, 98 Cal. App. 5th 486, 500 (2023). Discovery of confidential financial information is permitted if the information is relevant to the subject matter at issue. <i>Dompeling v. Super. Ct.</i>, 117 Cal. App. 3d 798, 808 (1981). Courts consider the following factors when an objection is made to the discovery of sensitive financial information: (i) the purpose for which the information is sought; (ii) the potential ramifications of disclosure on the parties and on trial; (iii) the nature of the opposing party's objections; (iv) whether the court can issue an order that promotes partial disclosure, another form of disclosure, or can fashion certain safeguards that permit disclosure only after the requesting party has met certain criteria that are just under the circumstances. <i>Greyhound Corp. v. Super. Ct.</i>, 56 Cal 2d 355, 382-83. Although corporations have a lesser right to privacy than human beings and are not entitled to claim a fundamental right to privacy, some right to privacy exists." <i>Ameri-Medical Corp. v. Workers' Comp. Appeals Bd.</i>, 42 Cal. App. 4th 1260, 1287-1288 (1996). To resolve an objection related to corporate privacy, "the discovery's relevance to the subject matter of the pending dispute and whether the discovery 'appears reasonably calculated to lead to the discovery of admissible evidence'" is balanced against the corporate right of privacy. <i>SCC Acquisitions, Inc. v. Super. Ct.</i>, 243 Cal. App. 4th 741, 756 (2015) (citing <i>Hecht, Solberg, Robinson, Goldberg & Bagley LLP v. Super. Ct.</i>, 137 Cal. App. 4th 579, 595 (2006)). "Doubts about relevance generally are resolved in favor of permitting discovery." <i>SCC Acquisitions, supra</i>, 243 Cal. App. 4th at 756. Tax returns are subject to robust statutory protections. 26 U.S.C. § 6103; Cal. Rev. & Tax Code § 7056; <i>see generally Webb v. Standard Oil Co.</i>, 49 Cal. 2d 509, 512-513 (1957). Exceptions arise where: "(1) the circumstances indicate an intentional waiver of the privilege; (2) the gravamen of the
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		lawsuit is inconsistent with the privilege; or (3) a public policy greater than that of the confidentiality of tax returns is involved.” <i>Weingarten v. Super. Ct.</i>, 102 Cal. App. 4th 268, 274 (2002) (citing <i>Schnable v. Super. Ct.</i>, 5 Cal. 4th 704, 721 (1993)). <i>Brown v. Superior Court</i> extended the privilege to W-2s and other forms that “constitute an integral part of the return and qualify as ‘information contained in the returns.’” <i>Brown v. Super. Ct.</i>, 71 Cal. App. 3d 141, 143-144 (1977). As a result, the Court applies the analytical framework for disclosure of a party’s tax returns equally to forms and documents that directly inform the contents of the tax returns themselves. Relatedly, in a non-contract action where a plaintiff seeks punitive damages arising from the defendant’s oppression, fraud, or malice, California Civil Code Section 3295 provides that the court “may, for good cause, grant a defendant a protective order requiring the plaintiff to produce evidence of a prima facie case of liability for damages . . . prior to the introduction of evidence of [t]he financial condition of the defendant.” Cal. Civ. Code § 3295(a)(2); see also Cal. Civ. Code § 3294(a). “No pretrial discovery by the plaintiff shall be permitted with respect to [the financial condition of the defendant]” absent a court order. Cal. Civ. Code § 3295(c). The protection is not absolute, and courts may consider all relevant factors in fashioning a disclosure remedy that balances protected privacy interests with the public interest in dispute resolution. See <i>Cobb v. Super. Ct.</i>, 99 Cal. App. 3d 543, 550-551 (1979). Pursuant to California Code of Civil Procedure Section 2031.240(c), “[i]f an objection is based on a claim of privilege . . . the response <i>shall</i> provide sufficient factual information for other parties to evaluate the merits of that claim, including, if necessary, a privilege log.” Cal. Civ. Proc. Code § 2031.240(c) (emphasis added). “The purpose of a ‘privilege log’ is to provide a specific factual description of documents in aid of substantiating a claim of privilege in connection with a request for document production.”
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		<i>Hernandez v. Super. Ct.</i>, 112 Cal. App. 4th 285, 292 (2003). Critically, specific factual descriptions of documents permit a judicial evaluation of a claim of privilege. <i>Id.</i> It is the initial burden of the party asserting the privilege to demonstrate that the communication falls within the privilege. <i>Wellpoint Health Networks, Inc. v. Super. Ct.</i>, 59 Cal. App. 4th 110, 123 (1997). Boilerplate privilege objections, when timely served, are sufficient to preserve them despite their other substantive flaws. <i>See Catalina Island Yacht Club v. Super. Ct.</i>, 242 Cal. App. 4th 1116, 1129 (2015). Accordingly, if a party responding to an inspection demand <i>timely</i> serves a response asserting an objection based on privilege, the trial court lacks authority to order the objection waived even if the responding party fails to serve a privilege log, serves an untimely privilege log, or serves a privilege log that fails either to adequately identify the documents to which the objection purportedly applies or provide sufficient factual information for the propounding party to evaluate the objection. <i>People ex rel. Lockyer v. Super. Ct.</i>, 122 Cal. App. 4th 1060, 1074-75 (2004) (finding “[b]ecause the [responding parties] timely objected on the grounds of privilege, they preserved these objections, regardless of whether the objections were sufficiently detailed in their response or privilege log and the court, as a matter of law, could not find that they had waived these privileges”). The appropriate remedy if the response or a privilege log fails to provide sufficient information to allow the court to rule on the merits is to order the responding party to serve a privilege log and impose sanctions for the deficient response. <i>Catalina Island Yacht Club, supra</i> at 1127; <i>see also</i> Cal. Civ. Proc. Code § 2031.310(h). Objections on the grounds that a request seeks confidential commercial information are not valid, nor is proprietary information protected on privacy grounds. <i>Nativi v. Deutsche Bank Nat’l Tr. Co.</i> 223 Cal. App. 4th 261, 313-14 (2014). However, California Code of Civil Procedure Section 2031.060 permits courts to direct that “a trade secret or other confidential . . . commercial information not be
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		disclosed, or be disclosed only to specified persons or in a specified way” upon a party's motion accompanied by a meet and confer declaration, and a showing of good cause. Cal. Civ. Proc. Code § 2031.060(a), (b)(5). a. Plaintiff’s RFP, Set Two, Nos. 75-77 Defendant’s response to Plaintiff’s RFP, Set Two, Nos. 75-77, provides a hybrid response that objects on the grounds that “‘backup information’ is not defined, and is vague and ambiguous.” ROA 281, pp. 10, 14. The Court finds that the term “backup information” is too vague and ambiguous to facilitate an intelligent response. Defendant’s objection is SUSTAINED. Plaintiff’s RFP, Set Two, Nos 78, 79 Defendant provides blanket objections to Plaintiff’s RFP, Set Two, Nos. 78 and 79, on the following grounds: that they seek information that is neither relevant nor likely to lead to the discovery of admissible evidence; that they are overbroad in time and scope and therefore unduly burdensome; that they presents a serious invasion of Defendant’s protected privacy interest in their confidential financial affairs; and that they are barred by operation of California Civil Code Section 3295(c). ROA 218, pp. 10-11. Defendant fails to show how Plaintiff’s inquiries could not reasonably lead to the discovery of admissible evidence or be helpful in preparation for trial. Defendant’s irrelevance objections are therefore OVERRULED. Defendant does not demonstrate how responding to the demands would result in an injustice to Defendant and fails to show how the trouble or expense required of a response would be incommensurate with the result sought. Defendant’s undue burden objections are therefore OVERRULED. Defendant also fails to demonstrate a reasonable expectation of privacy given the demand’s relevance to the subject matter in litigation. Defendant also fails to demonstrate a serious intrusion into Defendant’s protected privacy interest in Defendant’s confidential financial affairs,
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	particularly given the existence of the stipulated protective order. Defendant's objections on privacy grounds are therefore OVERRULED. Defendant's objections on California Civil Code Section 3295 grounds are well taken. However, the Court finds that because Defendant has placed its financial condition directly at issue in its Answer to Plaintiff's Second Amended Complaint (ROA 174, ¶ 30), disclosure is both relevant and necessary to promote the ultimate resolution of the dispute. However, because Plaintiff seeks punitive damages (<i>see</i> ROA 157, p.25, ¶ 6), any disclosure of the information requested in Plaintiff's RFP, Set Three, Nos. 78 and 79 shall be limited to attorneys' eyes only, used solely for purposes of this litigation, and destroyed upon resolution of the underlying dispute. Pursuant to the foregoing, Defendant's objection on Section 3295(c) grounds is OVERRULED. Consequently, Defendant must provide a further verified, code compliant response to plaintiff's RFP, Set Two, Nos. 78 and 79. Plaintiff's RFP, Set Two, Nos. 80, 81, and 85 Defendant provides blanket objections to Plaintiff's RFP, Set Two, Nos. 80, 81, and 85, on the grounds that they present a serious invasion of Defendant's protected privacy interest in their confidential financial affairs. ROA 218, pp. 11-12. The Court finds that Plaintiff has not demonstrated that Defendant has waived their privilege to withhold tax returns and tax-related forms, or that the gravamen of the lawsuit or public policy interest outweighs Defendant's protected interest in the confidentiality of their tax documents. Consequently, Defendant's objections to Plaintiff's RFP, Set Two, Nos. 80, 81, and 85, on tax return privacy grounds, are SUSTAINED. Plaintiff's RFP, Set Three, No. 98 Plaintiff's RFP, Set Three, No. 98 requests that Defendant produce "YOUR bank statements from March 2023 to July
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2023.” ROA 250, p.13.

Defendant provides a hybrid response that objects on the following grounds: that it is overbroad in time and scope and thus presents an undue burden; that it seeks information that is neither relevant nor likely to lead to the discovery of admissible evidence; that it is prohibited by California Civil Code Section 3295(c); that it presents a serious intrusion into Defendant’s right of privacy to confidential financial affairs; and that it “calls for information protected by any privilege;” and that is involves the disclosure of confidential, proprietary information. ROA 250, p.13.

The Court incorporates the discussion regarding Plaintiff’s RFP, Set Two, Nos. 78 and 79, here for brevity.

In light of the foregoing, Defendant’s objections on the grounds of irrelevance, undue burden, operation of California Civil Code Section 3295(c), and privacy are all **OVERRULED**.

Additionally, Defendant’s objection on sensitive, proprietary, or confidential commercial information grounds fails to articulate what trade secret or proprietary information would be subject to the risk of disclosure by the request. Additionally, the parties have entered into a stipulated protective order to mitigate any potential risks associated with the disclosure. Consequently, Defendant’s objection is **OVERRULED**.

Lastly, Defendant’s objection on the grounds that Plaintiff’s request seeks “information protected by *any* privilege” is woefully inadequate. ROA 250, p.13 (emphasis added). It neither specifically identifies *any* particular privilege that applies nor articulates how. It scarcely even qualifies as boilerplate and serves only to delay the discovery process. It is therefore **OVERRULED**.

Defendant’s response provides that “[a]ll documents in the demanded category between March 2023 and June 2023 in RESPONDING PARTY’S possession, custody, or control will be produced.” ROA 250, p.13.

		The Court finds that Defendant's response is not code compliant because it fails to specify a date when the responsive documents will be produced. Consequently, Defendant must provide a further verified, code compliant response, without objections, to Plaintiff's RFP, Set Three, No. 98. Code Compliant Responses to Special Interrogatories A party's response to interrogatories must consist of either: (i) an answer, (ii) an objection, or (iii) the exercise of the party's option to permit inspection or copying of records. Cal. Civ. Proc. Code § 2030.210(a). The responding party has a duty to answer as completely and straightforwardly as the information reasonably available to them permits. Cal. Civ. Proc. Code § 2030.220(a). Incomplete answers or answers that attempt to evade explicit questions are not code compliant. <i>Deyo v. Kilbourne</i>, 84 Cal. App. 3d 771, 783 (1978). Answers must be fully responsive and may not reference other documents in lieu of a response. <i>Deyo, supra</i>, 84 Cal. App. 3d at 783-84 (finding "it is not proper to answer by stating 'See my Deposition', or 'See my pleading . . .'"). If a response requires reference to another document, said document should be summarized and included in a comprehensive response. <i>Id.</i> Responding parties must make a reasonable and good faith effort to obtain the information necessary to provide a complete response, unless the information is equally available to the propounding party. Cal. Civ. Proc. Code § 2030.220(c); see <i>Regency Health Services, Inc. v. Super. Ct.</i>, 64 Cal. App. 4th 1496, 1504-05 (1998) (finding no exemption from the general duty to conduct a reasonable investigation to obtain responsive information to discovery requests). This duty encompasses the responding party's responsibility to provide information available from sources under their control, such as the party's lawyer, agents, employees, family members, and expert trial witnesses. <i>Deyo, supra</i>, 84 Cal. App. 3d at 782; <i>Castaline v.</i>
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		<i>City of L.A.</i>, 47 Cal. App. 3d 580, 588 (1975) (stating that “[w]hile a corporation or public agency may select the person who answers interrogatories . . . it has a corresponding duty to obtain information from <i>all sources</i> under its control . . . which may not be personally known to the answering agent) (emphasis added). If a party is still unable to provide a complete response after making a reasonable effort to obtain the requested information, they must specify why the information is unavailable and detail the efforts they made to obtain it. <i>Deyo, supra</i>, 84 Cal. App. 3d at 782. Finally, responses must be truthful. <i>Deyo, supra</i>, 84 Cal. App. 3d at 783 (stating “[p]arties . . . are required to state the truth, the whole truth, and nothing but the truth in answering written interrogatories.”). If an interrogatory requires an abstract, an audit, or a summary of information contained in records under the responding party’s control, the responding party may elect to permit the inspection and copying of the records in lieu of a response if the burden and expense of doing so would be substantially the same for both parties. Cal. Civ. Proc. Code 2030.230. Selecting this option is tantamount to verifying that the required records actually exist and contain the necessary information to answer the interrogatory. <i>Deyo, supra</i>, 84 Cal. App. 3d at 784 (<i>citing Kaiser Found. Hospitals v. Super. Ct. for L.A. Cnty.</i>, 275 Cal. App. 2d 801, 805 (1969). The Court’s discussion above regarding code compliant objections to requests for production is equally applicable to interrogatories and is incorporated herein. <i>See supra</i>. a. Plaintiff’s SROG, Set Two, Nos. 28-33, 42, 44, 47, 48, 54-58 Defendant responds with blanket objections on the following grounds: that the request seeks information that is neither relevant nor likely to lead to the discovery of admissible evidence; that the request is overbroad in time and scope and thus presents an undue burden; and that the request infringes upon Mr. Villanueva’s right to privacy in
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	his confidential financial affairs. ROA 214, pp. 2, 7-12, 14-16. The Court incorporates the discussion regarding Plaintiff's RFP, Set Two, Nos. 78, and 79, here for brevity. In light of the foregoing, Defendant's objections to Plaintiff's SROG, Set Two, Nos. 28-33, 42, 44, 47, 48, 54-58 on the grounds of irrelevance, undue burden, and privacy are all OVERRULED. Consequently, Defendant must therefore provide a verified, code compliant response to Plaintiff's SROG, Set Two, Nos. 28-33, 42, 44, 47, 48, 54-58, without objections. Plaintiff's SROG, Set Two, No. 34 Plaintiff's SROG, Set Two, No. 34, asks Defendant to "IDENTIFY all DOCUMENTS that show what YOU paid Victor Villanueva in 2021 including all draws, payroll, payments, expense reimbursements including for vehicles, gas, cell phones, W2, W4 or 1099 payments." ROA 214, p.9 Defendant responds with a hybrid response that contains objections on the following grounds: that the request seeks information that is neither relevant nor likely to lead to the discovery of admissible evidence; that the request is overbroad in time and scope and thus presents an undue burden; and that the request infringes upon Mr. Villanueva's right to privacy in his confidential financial affairs. ROA 214, pp. 9-10. The Court incorporates the discussion regarding Plaintiff's RFP, Set Two, No. 79, here for brevity. In light of the foregoing, Defendant's objections on the grounds of irrelevance, undue burden, and privacy are all OVERRULED. Defendant's answer provides "RESPONDING PARTY responds as follows: Mr Villanueva's W-2; Quickbooks reports." Although all Defendant's objections to the response are overruled, the Court finds that Defendant's answer is code
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	compliant. Consequently, Plaintiff is not entitled to a further response to Plaintiff's SROG, Set Two, No. 34. Plaintiff's SROG, Set Two, No. 41 Plaintiff's SROG, Set Two, No. 41, requests that Defendant "IDENTIFY every ENTITY who is presently a member of AI LLC." ROA 214, p.10. Defendant objects to the interrogatory on the grounds that the term AI LLC is undefined and therefore precludes an intelligent reply, and that it seeks information that is neither relevant nor likely to lead to the discovery of admissible evidence. ROA 214, p.10. Defendant's objections are conclusory and not supported by any facts. They are therefore OVERRULED. Consequently, Defendant must provide a code compliant response to Plaintiff's SROG, Set Two, No. 41, without objections. Plaintiff's SROG, Set Two, No. 46 Plaintiff's SROG, Set Two, No. 46, asks Defendant to "IDENTIFY all books and records of LFI." ROA 214 p.11. Defendant responds with blanket objections on the following grounds: that Plaintiff's reference to "books and records" is undefined and is therefore vague and ambiguous. ROA 214, pp. 11-12. The Court finds that Plaintiff's request is sufficiently ambiguous to preclude an intelligent response. Accordingly, Defendant's objection to Plaintiff's SROG, Set Two, No. 46, on the grounds of vagueness and ambiguity, is SUSTAINED. Plaintiff's SROG, Set Two, Nos. 49 and 51 Defendant responses consist of blanket objections on the grounds that the requests seek information that is neither relevant nor likely to lead to the discovery of admissible evidence, and that the requests are overbroad in time and scope and thus present an undue burden. ROA 214, p.13. The Court incorporates the discussion regarding Plaintiff's
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	RFP, Set Two, No. 79, as to objections on the grounds of ambiguity and undue burden, here for brevity. Accordingly, Defendant's objections are both OVERRULED. Consequently, Defendant must provide a verified, code compliant response to Plaintiff's SROG, Set Two, Nos. 49 and 51, without objections. Plaintiff's SROG, Set Three, No. 61 Plaintiff's SROG, Set Three, No. 61, asks that Defendant "IDENTIFY all DOCUMENTS that YOU received RELATING TO Karlina Manalese's workers' compensation claim." ROA 255, p.2. Defendant provides a hybrid response that objects on the grounds that, because the request "seeks a compilation, summary, or analysis of documents or information," it presents an undue burden. The Court finds that Defendant likely confused the interrogatory with a demand for production and has not demonstrated that the simple task of identifying documents would be incommensurate with the result sought. It is therefore OVERRULED. Defendant provided the following answer: "RESPONDING PARTY refers PROPOUNDING PARTY to the Privilege Log served on April 30, 2024, and the documents produced with [B]ates numbers Strikewords_000496 – Strikewords_000571." ROA 255, p.2. For the reasons detailed above, the Court finds Defendant's answer is not compliant. <i>See supra</i>. Accordingly, Defendant must provide a verified, code compliant response to Plaintiff's SROG, Set Three, No. 61, without objections. Plaintiff's SROG, Set Three, No. 69 Plaintiff's SROG, Set Three, No. 69, requests that Defendant "IDENTIFY all individuals YOU terminated due to loss of YOUR contract with Glenaire." ROA 244, p.4. Defendant provides a hybrid response that raises the following objections: that it presents an undue burden; that "it calls for information protected by any privilege or
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	protection”; that it involves the disclosure of sensitive proprietary information or documents subject to confidentiality or nondisclosure; and that it implicates the privacy rights of third parties. ROA 255, pp. 4-5. Defendant does not demonstrate how responding to the demands would result in an injustice to Defendant and fails to show how the trouble or expense required of a response would be incommensurate with the result sought. Defendant’s undue burden objections are therefore OVERRULED. Defendant’s objection on the grounds that Plaintiff’s request seeks “information protected by <i>any</i> privilege” is woefully inadequate. ROA 255, p.4-5 (emphasis added). It neither specifically identifies <i>any</i> particular privilege that applies nor articulates how. It scarcely even qualifies as boilerplate and serves only to delay the discovery process. It is therefore OVERRULED. Defendant also fails to demonstrate a serious intrusion into a third party’s protected privacy interest. Defendant’s objections on privacy grounds are therefore OVERRULED. Finally, Defendant’s objection on sensitive, proprietary, or confidential commercial information grounds fails to articulate what trade secret or proprietary information would be subject to the risk of disclosure by the request. Additionally, the parties have entered into a stipulated protective order to mitigate any potential risks associated with the disclosure. Consequently, Defendant’s objection is OVERRULED. Defendant’s answer to Plaintiff’s SROG, Set Three, No. 69, provides one name and provides that “[d]iscovery is ongoing and RESPONDING PARTY reserves the right to amend this response at a later time.” ROA 255, p.5. The Court finds Defendant’s answer indicates that Defendant was unable to provide a complete response at the time it was offered. Accordingly, Defendant’s response lacks the required explanation of why the information required for a complete response is unavailable and the
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	efforts Defendant has made to obtain it. Consequently, the Court finds that Defendant’s response to Plaintiff’s SROG, Set Three, No. 69, is not code compliant. Defendant must provide a complete response, without objections, that elaborates upon why the information necessary for a complete response is unavailable and details the efforts Defendant has made to obtain it. Plaintiff’s SROG, Set Three, No. 77 Plaintiff’s SROG, Set Three, No. 77 requests that Defendant “[s]tate the pay (regardless of W2 or 1099 or owner draw) of every employee at Strikeworks from March 2023 to July 2023, including Victor Villanueva and Michael Campbell.” ROA 255, p.5. Defendant provides a hybrid response that raises the following objections: that it presents an undue burden; that “it calls for information protected by any privilege or protection”; that it involves the disclosure of sensitive proprietary information or documents subject to confidentiality or nondisclosure; and that it implicates the privacy rights of third parties and is barred by operation of California Code of Civil Procedure Section 3295(c); that it seeks information that is neither relevant nor likely to lead to the discovery of admissible evidence; that it invades Defendant’s privacy with respect to its confidential financial affairs. ROA 255, pp. 6. Defendant’s multiple conclusory objections on the grounds of undue burden, irrelevance, privacy interests in confidential financial affairs, third party privacy interests, operation of California Civil Code Section 3295(c), and disclosure of sensitive proprietary information are OVERRULED for the reasons outlined in the Court’s previous discussions. <i>See supra</i>. Additionally, Defendant’s objection on the grounds that Plaintiff’s request seeks “information protected by <i>any</i> privilege” is woefully inadequate. ROA 255, p.6 (emphasis added). It neither specifically identifies <i>any</i> particular privilege that applies nor articulates how. It scarcely even qualifies as boilerplate and serves only to delay the
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	discovery process. It is therefore OVERRULED. Defendant’s response to Plaintiff’s SROG, Set Three, No. 77, provides “RESPONDING PARTY refers PROPOUNDING PARTY to the documents produced at Bates numbers Strikeworks_0000734 – Strikeworks_0000760” and that “[d]iscovery is ongoing and RESPONDING PARTY reserves the right to amend this response.” ROA 255, p.6. The Court finds Defendant’s answer indicates that Defendant was unable to provide a complete response at the time it was offered. Accordingly, Defendant’s response lacks the required accounting of why the information required for a complete response is unavailable and the efforts Defendant has made to obtain it. <i>See</i> ROA 255, p.6. Consequently, Defendant must provide a verified, code compliant response to Plaintiff’s SROG, Set Three, No. 77, without objections, that details the efforts made to obtain the information required for a complete response. Sanctions re: Motions to Compel Further Responses to Discovery Requests [C]ourts <i>shall</i> impose a monetary sanction . . . against any party . . . who unsuccessfully makes or opposes a motion to compel further response[s] . . . unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. Cal. Civ. Proc. Code §§ 2030.300(d), 2031.310(d), 2033.290(d). “‘Whenever one party's improper actions—even if not “willful”—in seeking or resisting discovery necessitate the court's intervention in a dispute, the losing party presumptively should pay a sanction to the prevailing party.’” <i>Ellis v. Toshiba Am. Info. Sys. Inc.</i>, 218 Cal. App. 4th 853, 878 (2013) (quoting <i>Clement v. Alegre</i>, 177 Cal. App. 4th 1277, 1286-1287 (2009)). The term “substantial justification” means a justification that “is clearly reasonable because it is well grounded in
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		both law and fact.” <i>Doe v. U.S. Swimming, Inc.</i>, 200 Cal. App. 4th 1424, 1434 (2011). Here, the Court finds that Defendant offers no substantial justification for failing to provide code compliant responses to Plaintiff’s discovery demands as outlined above. Additionally, the Court finds no reason why the imposition of sanctions upon Defendant for unsuccessfully opposing Plaintiff’s motions would work an injustice. Consequently, the imposition of sanctions upon Defendant for unsuccessfully opposing these motions is appropriate. However, the Court finds significant mitigating factors in Plaintiff’s failure to provide good cause to compel Defendant’s further response to multiple requests for production; Plaintiff’s insistence, despite valid objections, that Defendant provide further responses to a number of requests; and Plaintiff’s insistence, despite valid responses, that Defendant provide further responses to a number of requests. Assigning Liability for Sanctions California Code of Civil Procedure Section 2023.030 permits a court to impose monetary sanctions on “one engaging in the misuse of the discovery process, or any attorney advising that conduct . . .” or any party who “unsuccessfully assert[s] that another has engaged in the misuse of the discovery process, or on any attorney who advised that assertion, or on both.” Cal. Civ. Proc. Code § 2023.030(a). When the misconduct is clearly attributable to one party, courts should generally sanction only that party. However, when monetary sanctions are sought against an attorney for client misconduct, the court <i>must find</i> that the attorney advised the client to engage in the sanctionable conduct. <i>Cornerstone Realty Advisors, LLC v. Summit Healthcare REIT, Inc.</i>, 56 Cal. App. 5th 771, 799 (2020) (emphasis added). The burden then shifts to the attorney to prove that they did not provide such advice. <i>Id.</i> (citing <i>Ghanooni v. Super Shuttle</i>, 20 Cal. App. 4th 256, 260-261 (1993)); e.g., <i>Corns v. Miller</i>, 181 Cal. App. 3d 195, 200-201 (1986).
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	Here, Defendant’s failure to provide code compliant responses to the discovery requests detailed above is not attributable to client misconduct. Thus, sanctions are appropriate against Defendant’s counsel, Yoffe & Cooper, LLP, only. Additionally, Plaintiff’s failure to show good cause, persistence in pursuing responses despite valid objections, and insistence on further responses where initial responses were compliant is not attributable to client misconduct. Thus, sanctions are appropriate against Plaintiff’s counsel, Jessica Gomez, only. Determining Reasonable Monetary Sanctions Three principles govern the award and amount of attorney’s fees and costs imposed as a discovery sanction. <i>See Cornerstone, supra</i>, 56 Cal. App. 5th at 790 (compulsion, causation, and reasonableness). Additionally, California Code of Civil Procedure Section 2023.040 requires a motion requesting sanctions to be accompanied by “a declaration setting forth facts supporting the amount of any monetary sanction sought.” Cal. Civ. Proc. Code § 2023.040. “The amount of monetary sanctions is limited to the ‘reasonable expenses, including attorney’s fees’ that a party incurred as a result of the discovery abuse.” <i>Cornerstone, supra</i>, 56 Cal. App. 5th at 791 (quoting Cal. Civ. Proc. Code § 2023.030(a)). The principle of reasonableness means a trial court has discretion to reduce the amount of fees and costs requested as a discovery sanction in order to reach a reasonable award. <i>Id.</i>, (citing <i>Parker v. Wolters Kluwer U.S., Inc.</i>, 149 Cal. App. 4th 285, 294 (2007)). “After a motion to compel discovery has been filed, further expenses incurred in meeting and conferring on the discovery dispute, whether it be through private mediation or normal channels of communication, are <i>not</i> compensable as discovery sanctions.” <i>Marriage of Moore, supra</i>, 102 Cal. App. 5th at 1301 (emphasis added). Here, having weighed these principles, having considered both Parties’ counsel’s calculation of the reasonable expenses incurred as a result of bringing these motions, and
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		taking into consideration both parties' discovery misuse, the Court finds that Plaintiff is entitled to a reasonable sanctions amount of \$7,471.30, which fairly accounts for the number of individual disputed requests on which Defendants prevailed. Ruling Accordingly, the Court makes the following orders: The Court GRANTS IN PART Plaintiff's Motion to Compel Further Responses to Requests for Production, Set Two (ROA 224) and ORDERS Defendant to serve further verified, code compliant responses, without objections, and responsive documents, to Plaintiff's Requests for Production, Set Two, Nos. 78 and 79, no later than ten (10) days after receiving notice of this Order. The Court GRANTS IN PART Plaintiff's Motion to Compel Further Responses to Requests for Production, Set Three (ROA 259) and ORDERS Defendant to serve further verified, code compliant responses, without objections, and responsive documents, to Plaintiff's Requests for Production, Set Three, No. 98, no later than ten (10) days after receiving notice of this Order. The Court GRANTS IN PART Plaintiff's Motion to Compel Further Responses to Special Interrogatories, Set Two (ROA 228) and ORDERS Defendant to serve further verified, code compliant responses, without objections, to Plaintiff's Special Interrogatories, Set Two, Nos. 28-33, 41 42, 44, 47-49, 51, and 54-58, no later than ten (10) days after receiving notice of this Order. The Court GRANTS Plaintiff's Motion to Compel Further Responses to Special Interrogatories, Set Three (ROA 263) and ORDERS Defendant to serve further verified, code compliant responses, without objections, to Plaintiff's Special Interrogatories, Set Three, Nos. 61, 69, and 77, no later than ten (10) days after receiving notice of this Order. Lastly, the Court IMPOSES monetary discovery sanctions in the total collective amount of \$7,471.30 upon counsel for Defendant, Yoffe & Cooper, LLP, due and payable to
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		counsel for Plaintiff, Jessica Gomez, no later than thirty (30) days after receiving notice of this Order. Plaintiff shall give notice.
8.	<u>30-2024-01444459-CU-WT-NJC</u> Park vs. Optimum Professional Property Management, Inc.	Before the Court are the following five (5) motions: a Motion to Compel Further Responses to Form Interrogatories (“MF-FROG”), Set One, and Sanctions, brought by Plaintiff Frank Park (“Plaintiff”) against Defendant Optimum Professional Property Management, Inc. (“Optimum”); a Motion to Compel Further Responses to Requests for Production (“MF-PROD”), Set One, and Sanctions; brought by Plaintiff against Optimum; a Motion to Compel Initial Responses to Form Interrogatories (“MI-FROG”), Set One, and Sanctions, brought by Plaintiff against Defendant ADP TotalSource, Inc. (“ADP”); a Motion to Compel Initial Responses to Requests for Production (“MI-PROD”), Set One, and Sanctions, brought by Plaintiff against ADP; and a Motion for Relief from Waiver of Discovery Objections brought by ADP. ROAs 50, 59, 95, 100, 161. The underlying controversy involves claims of disability discrimination and wrongful termination. ROA 2. Plaintiff seeks an order, pursuant to California Code of Civil Procedure Section 2030.300, compelling Optimum to provide further responses to Plaintiff’s General Form Interrogatories (“FROG”), Set One, Nos. 1.1 and 12.1; and Plaintiff’s Employment Law Form Interrogatories (“E-FROG”), Set One, Nos. 200.3, 201.1, 201.3, 201.6, 201.7, 206.3, 207.2, 209.2, 211.1, and 216.1. ROA 50, p.2; ROA 148; ROA 190, p.2. Plaintiff also seeks the imposition of monetary discovery sanctions upon Optimum in the amount of \$19,280.00 for the costs associated with bringing his MF-FROG. ROA 50, p.2.

	Plaintiff also seeks an order, pursuant to California Code of Civil Procedure Section 2031.310, compelling Optimum to provide further responses to Plaintiff's Requests for Production ("PROD"), Set One, Nos. 22-26, 54-56, 62, 64-66, 68, 74, and 75. ROA 59, p.2; ROA 148; ROA 188, ¶ I. Plaintiff also seeks the imposition of monetary discovery sanctions upon Optimum in the amount of \$16,246.65 for the costs associated with bringing his MF-PROD. ROA 59, p.2. Additionally, Plaintiff seeks an order, pursuant to California Code of Civil Procedure Section 2030.260, compelling ADP to provide verified responses to Plaintiff's FROG, Set One, and E-FROG, Set One, without objections. ROA 95, p.2. Plaintiff also seeks the imposition of monetary discovery sanctions upon ADP in the amount of \$7,995.01 for the costs associated with bringing his MI-FROG. <i>Id.</i> Lastly, Plaintiff seeks an order, pursuant to California Code of Civil Procedure Section 2031.260, compelling ADP to provide verified responses, without objections, to Plaintiff's PROD, Set One, and to produce all responsive documents. ROA 100, p.2. Plaintiff also seeks the imposition of monetary discovery sanctions upon ADP in the amount of \$6,107.97 for the costs associated with bringing his MI-PROD. <i>Id.</i> In total, Plaintiff seeks \$49,629.63 in monetary discovery sanctions. ADP requests that the Court deny Plaintiff's MI-FROG, Set One, grant ADP relief from waiver of objections to Plaintiff's FROG and E-FROG, Set One, and impose monetary discovery sanctions upon Plaintiff in the amount of \$7,995.01 for the cost associated with opposing Plaintiff's motion. ROA 169, p.2. ADP also requests that the Court deny Plaintiff's MI-PROD, grant ADP relief from waiver, and impose monetary discovery sanctions upon Plaintiff in the amount of \$6,107.97 for the costs borne by ADP in opposing Plaintiff's motion. ROA 171, p.2. In total, ADP seeks \$14,102.98 in monetary discovery
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		sanctions. Optimum requests that the Court deny Plaintiff's MF-PROD, Set One, and MF-FROG, Set One, in their entirety. ROA 175, ¶ IV; ROA 177, ¶ IV. Motions to Compel Initial Responses to Discovery Requests and Relief from Waiver of Objections The California Discovery Act requires responses to requests for production and interrogatories within thirty (30) days after service unless extended or shortened by the court through a party's motion, or the parties agree to an alternate deadline. Cal. Civ. Proc. Code §§ 2030.260, 2030.270, 2031.260(a), 2031.270. Section 1010.6 extends this deadline by two (2) court days for notices served by electronic means. Cal. Civ. Proc. Code § 1010.6(a)(3)(B). If the last day to perform an act falls on a Saturday, Sunday, or holiday, the act may be performed on the next court day. Cal. Civ. Proc. Code § 12a(a). Parties may agree to extend the deadline to respond in writing. Cal. Civ. Proc. Code §§ 2030.270 (a)-(b), 2031.270(a)-(b). California Code of Civil Procedure Section 2030.290 provides: [i]f a party to whom interrogatories are directed fails to serve a timely response . . . [t]he party waives any right to exercise the option to produce writings . . . as well as any objection to the interrogatories, including one based on privilege or on the protection of work product. . . ." Cal. Civ. Proc. Code § 2030.290(a). California Code of Civil Procedure Section 2031.300 applies similarly to requests for production. Cal. Civ. Proc. Code § 2031.300(a). A party may be relieved of these waivers only upon motion and only upon the court's determination that <i>both</i> of the following conditions are satisfied: (i) that "[t]he party has subsequently served a response that is in substantial compliance . . . [and] [ii] [t]he party's failure to serve a timely response was the result of mistake, inadvertence, or
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	excusable neglect.” Cal. Civ. Proc. Code §§ 2030.290(a), 2031.300(a). On October 1, 2025, Plaintiff served PROD, FROG, and E-FROG, Set One, on ADP by electronic means. ROA 91, p.2, ¶3; ROA 93, p.3, ¶3. ADP’s deadline to respond was November 4, 2025. Cal. Civ. Proc. Code §§ 12a(a), 1010.6(a)(3)(B), 2030.260, 2030.270, 2031.260(a). On November 11, 2025, having received no initial responses from ADP, Plaintiff emailed ADP demanding that ADP provide responses, without objections, by November 18, 2025, or be subject to court intervention. ROA 91, p.3, ¶6; ROA 93, p.3, ¶6. On November 14, 2025, ADP requested an additional two weeks to provide initial responses. ROA 91, p.3, ¶7. In response, Plaintiff agreed to allow ADP until November 28, 2025, to provide initial responses, but reiterated that the original deadline to respond had expired, was not being extended, and that any additional time allowed to respond would only serve to avoid unnecessary motion practice. ROA 91, Exh. E. Importantly, Plaintiff specifically stated that ADP must provide responses without objections. <i>Id.</i> On December 3, 2025, ADP notified Plaintiff by email that ADP would provide responses no later than December 12, 2025. On December 15, 2025, having <i>still</i> received no initial responses to Plaintiff’s PROD, FROG, and E-FROG, Set One, Plaintiff served MI-PROD and MI-FROG upon ADP. ROA 91, p.33; ROA 93, p.36. On January 23, 2026, ADP provided initial responses to Plaintiff’s FROG, E-FROG, and PROD, Set One, discovery requests. ROA 186, ¶8. In ADP’s motion for relief from waiver of discovery objections, ADP argues that the Court should grant relief because ADP served substantially compliant responses on January 23, 2025 [<i>sic</i>]. ROA 162, ¶ 8. Had the Court only to rely on ADP’s moving papers, there would have been no
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	way for the Court to substantiate ADP's claims because ADP failed to submit their responses to Plaintiff's PROD, FROG, and E-FROG, Set One, to the Court. That would have been sufficient to deny relief from waiver. Perhaps inspired by the spirit of fairness, it is <i>Plaintiff</i> that offers the Court its first opportunity to scrutinize ADP's initial responses to Plaintiff's PROD, FROG, and E-FROG, Set One. <i>See</i> ROA 192, Exhs. A and B; ROA 194, Exh. A. Having thus reviewed ADP's initial responses, the Court finds they are substantially compliant and that ADP has satisfied the first prong for relief from waiver of objections. However, the Court is not convinced by ADP's argument that its failure to serve a timely response is attributable to mistake, inadvertence, or excusable neglect. ADP argues that ADP's counsel failed to serve timely responses because of a medical emergency involving the contemporaneous injury to counsel's child and illness among their family that occurred the week of November 14, 2025. ROA 162, ¶4. On the record before the Court, none of this information was shared with Plaintiff until <i>after</i> Plaintiff filed their motions to compel. Neither does ADP's counsel present evidence of any attempts to coordinate with any among the <i>very</i> deep bench of associates listed on ADP's counsel's website to assist in upholding ADP's statutory obligation to serve timely responses. <i>See</i> Jackson Lewis Locations Page, https://www.jacksonlewis.com/locations/orange-county#people (last visited May 5, 2026). Thus, the Court cannot find ADP's counsel's neglect excusable. Counsel offers no evidence of any efforts to mitigate the failure to provide timely responses, despite knowing they would almost certainly be unable to comply. The argument also fails to explain (i) the nearly two-month delay <i>after</i> counsel's emergency before serving initial responses, and (ii) the approximately twenty-three (23) days before the emergency during which counsel neither served responses nor sought an extension of the thirty (30) day deadline. While the court is sensitive to counsel's misfortune, the Court is not inclined to grant relief from waiver where the
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	failure to provide timely responses was <i>clearly</i> avoidable. Pursuant to the foregoing, the Court finds that the parties did not agree to extend ADP's deadline to file initial responses to Plaintiff's PROD, FROG, and E-FROG, Set One, discovery requests, and that ADP's failure to serve timely responses is not attributable to mistake, inadvertence, or excusable neglect. Consequently, ADP's request for relief from waiver of objections is DENIED, and ADP must provide verified, code compliant responses, without objections, to Plaintiff's PROD, FROG, and E-FROG, Set One. Additionally, ADP is subject to sanctions for failure to provide timely responses to Plaintiff's properly served discovery requests. Code Compliant Responses to Interrogatories A party's response to interrogatories must consist of either: (i) an answer, (ii) an objection, or (iii) the exercise of the party's option to permit inspection or copying of records. Cal. Civ. Proc. Code § 2030.210(a). The responding party has a duty to answer as completely and straightforwardly as the information reasonably available to them permits. Cal. Civ. Proc. Code § 2030.220(a). Incomplete answers or answers that attempt to evade explicit questions are not code compliant. <i>Deyo v. Kilbourne</i>, 84 Cal. App. 3d 771, 783 (1978). Answers must be fully responsive and may not reference other documents in lieu of a response. <i>Deyo, supra</i>, 84 Cal. App. 3d at 783-84 (finding "it is not proper to answer by stating 'See my Deposition', or 'See my pleading . . .'"). If a response requires reference to another document, said document should be summarized and included in a comprehensive response. <i>Id.</i> Responding parties must make a reasonable and good faith effort to obtain the information necessary to provide a complete response, unless the information is equally available to the propounding party. Cal. Civ. Proc. Code § 2030.220(c); see <i>Regency Health Services, Inc. v. Super. Ct.</i>, 64 Cal. App. 4th 1496, 1504-05 (1998) (finding no exemption on the basis of incompetency from the general duty to conduct
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	a reasonable investigation to obtain responsive information to discovery requests). This duty encompasses the responding party's responsibility to provide information available from sources under their control, such as the party's lawyer, agents, employees, family members, and expert trial witnesses. <i>Deyo, supra</i>, 84 Cal. App. 3d at 782; <i>Smith v. Super. Ct.</i>, 189 Cal. App. 2d 6, 12 (1961); <i>Castaline v. City of Los Angeles</i>, 47 Cal. App. 3d 580, 588 (1975) (stating that "[w]hile a corporation or public agency may select the person who answers interrogatories . . . it has a corresponding duty to obtain information from <i>all sources</i> under its control . . . which may not be personally known to the answering agent) (emphasis added). If a party is still unable to provide a complete response after making a reasonable effort to obtain the requested information, they must specify why the information is unavailable and detail the efforts they made to obtain it. <i>Deyo, supra</i>, 84 Cal. App. 3d at 782. Finally, responses must be truthful. <i>Deyo, supra</i>, 84 Cal. App. 3d at 783 (stating "[p]arties . . . are required to state the truth, the whole truth, and nothing but the truth in answering written interrogatories."). Objections must be stated individually, must specifically reference the interrogatory to which they are directed, and must clearly set forth the specific ground for the objection. Cal. Civ. Proc. Code §§ 2030.210(c), 2030.240(b). Blanket objections to an entire set of interrogatories and "boilerplate" objections, although sanctionable, are considered sufficient to preserve only objections raised on the grounds of attorney-client or attorney work product privileges, but only if they are timely served. <i>Korea Data Systems Co. v. Super. Ct.</i>, 51 Cal. App. 4th 1513, 1516 (1997). The responding party bears the burden of substantiating its objections to interrogatories. <i>Coy v. Super. Ct. of Contra Costa Cnty</i>, 58 Cal. 2d 210, 220 (1962). When objecting to interrogatories, responding parties must show "facts from which the trial court might find that the interrogatories
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	were interposed <i>for improper purposes</i>.” <i>Id.</i> (emphasis added). Objections on the grounds that a discovery request is vague or ambiguous are valid “only if the question or request is wholly unintelligible or precludes an intelligent reply.” Cal. Judges' Benchbook Civ. Proc. Discovery § 5.5. For interrogatories and requests for Admission, “[w]hen a question is somewhat ambiguous, but ‘the nature of the information sought is apparent,’ the question must be answered.” <i>Id.</i> (citing <i>Deyo, supra</i>, 84 Cal. App. 3d at 783). If a court determines that a request for admission or interrogatory is “too ambiguous to allow intelligent reply,” it may either sustain the objection or order the question rephrased. <i>Cembrook v. Super. Ct In and For City and Cnty of San Francisco</i>, 56 Cal. 2d 423, 430 (1961). That the form of a question is compound or that it assumes facts are not valid objections to form interrogatories that are not significantly edited by the propounding party. <i>West Pico Furniture Co. of Los Angeles v. Super. Ct. In and For Lost Angeles Cnty</i>, 56 Cal. 2d 407, 421 (1961) (emphasizing that the rules for written interrogatories are <i>not</i> the same as those for taking oral depositions). Further, California Code of Civil Procedure Section 2030.060 specifically prohibits a “specially prepared interrogatory” from containing subparts or any compound, conjunctive, or disjunctive questions. Cal. Civ. Proc. Code § 2030.060(f). No such prohibition exists for form interrogatories. That a form interrogatory calls for a legal conclusion is also not a valid objection to an unedited form interrogatory. <i>West Pico, supra</i>, 56 Cal. 2d at 417 (stating “[s]uch objection may be proper when the answer is intended to have probative value” but may not be used in discovery to prevent “a party from obtaining information that will lead him to probative facts.”). To sustain an objection on the grounds that a discovery request is irrelevant to the subject matter, a party must show that the “line of questioning cannot, as a reasonable possibility, lead to the discovery of admissible evidence or be helpful in preparation at trial.” <i>Pacific Tel. & Tel. Co. v.</i>
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	<i>Super. Ct.</i>, 2 Cal. 3d 161, 173 (1970). “[I]nformation is relevant if it might reasonably assist a party in <i>evaluating</i> the case, <i>preparing</i> for trial, or <i>facilitating</i> settlement.” <i>Gonzalez v. Super. Ct.</i>, 33 Cal. App. 4th 1539, 1546 (1995) (italics original, internal quotes omitted.) “Admissibility is not the test and information[,] unless privileged, is discoverable if it might reasonably lead to admissible evidence.” <i>Lopez v. Watchtower Bible and Tract Soc’y of New York, Inc.</i>, 246 Cal. App. 4th 566, 591 (2016). When a nonparty’s identity is relevant to the action, a party may be compelled to disclose its name, address, and phone number. <i>Pioneer Electronics (USA), Inc. v. Super. Ct.</i>, 40 Cal. 4th 360, 367 (2007) (citing <i>Hill v. Nat’l Collegiate Athletic Assn.</i>, 7 Cal. 4th 1, 36–37 (1994)). Although disclosure may invade their privacy, there is generally no protection for the identity, addresses, and phone numbers of percipient witnesses. <i>Pioneer</i>, <i>supra</i>, 40 Cal. 4th at 373; <i>see also Alch v. Super. Ct.</i>, 165 Cal. App. 4th 1412, 1426 (2008) (holding that basic identifying and demographic information of percipient witnesses, including names, addresses, and phone numbers, is discoverable, and the trial court erred in failing to strike privacy objections to discovery requests seeking this information). “The objection of [undue] burden is valid only when that burden is <i>demonstrated</i> to result in injustice. <i>West Pico</i>, <i>supra</i>, 56 Cal. 2d at 418 (emphasis added). To make this showing, a party opposing discovery must make “a factual showing to the trial court of the nature and extent of the trouble and expense . . . entailed in responding to the request for discovery”, and “that the ultimate effect of the burden is incommensurate with the result sought.” <i>Mead Reinsurance Co. v. Super. Ct.</i>, 188 Cal. App. 3d 313, 321 (1986) (quoting <i>West Pico</i>, <i>supra</i>, 56 Cal. 2d at 417); <i>see also Lopez</i>, <i>supra</i>, 246 Cal. App. 4th at 578-79 (rejecting a responding party’s overbreadth objections for failure to support their claims that the request would impose an enormous administrative burden). An objection to a form interrogatory on the grounds that it calls for speculation is invalid. If a responding party is
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		forced to speculate in their response to an interrogatory, it is inevitably attributable to a lack of complete information. In such cases, the responding party is to answer as completely as possible, explain why they cannot presently provide a complete answer, and detail the efforts undertaken to gather the information necessary to provide a complete answer. To sustain an objection on the grounds that a discovery request is cumulative or duplicative, the opposing party must present sufficient facts for the court to determine that “[t]he discovery sought is <i>unreasonably</i> cumulative or duplicative, or is obtainable from some other source that is more convenient, less burdensome or less expensive”; or that “[t]he selected method of discovery is unduly burdensome or expensive, taking into account the needs of the case, the amount in controversy, and the importance of the issues at stake in the litigation.” Cal. Civ. Proc. Code § 2019.030. To sustain an objection on the grounds that the information requested is equally available to the propounding party, the respondent must explicitly state that they lack sufficient information to provide a complete response. Cal. Civ. Proc. Code § 2030.220(c). The respondent is relieved from the duty to make a reasonable inquiry to obtain the information from other sources only if those sources are readily available to the propounding party. <i>Id.</i> A respondent may not use this objection to avoid disclosing similar lawsuits against it. <i>See Perkins v. Super. Ct.</i>, 118 Cal. App. 3d 761, 764-75 (1981) (compelling response to interrogatory requesting case information on similar lawsuits where responding party provided no facts indicating the request imposed an undue burden). a. Optimum’s response to Plaintiff’s FROG, Set One, No. 1.1 The Court finds Optimum’s first supplemental response incomplete and evasive as it fails to provide the contact information for all parties listed or detail the efforts taken by Optimum to obtain the facts necessary to provide a complete answer. <i>See</i> ROA 173, pp. 45-46. Accordingly, Optimum must provide a verified, code compliant response
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	to Plaintiff’s FROG, Set One, No. 1.1, without objections. Optimum’s Response to Plaintiff’s FROG, Set One, No. 12.1 Optimum’s third supplemental response objects on the grounds that the term “INCIDENT” is too ambiguous to provide an intelligent reply because it is undefined, and Plaintiff alleges several incidents in his Complaint. ROA 173, p.48 The Court notes that Judicial Council Form DISC-001, Section 4(b) permits the propounding party to specifically define “INCIDENT” for the purposes of specifying to which act the propounding party requires a response. <i>See</i> Jud. Council of Cal. Form DISC-001, Form Interrogatories—General, § 4(b) (Rev. January 1, 2024). Plaintiff did not avail himself of this opportunity to specify to which of the many “wrongful acts” alleged in his complaint he was referring. <i>E.g.</i>, ROA 2, ¶24. Additionally, the option selected by Plaintiff, which defines “INCIDENT” as “the circumstances and events surrounding the alleged accident, injury, or other occurrence or breach of contract giving rise to this action or proceeding,” is not helpful, given that the underlying controversy does not concern an accident, injury, or breach of contract. <i>See</i> ROA 51, p.8. Consequently, Optimum’s objection to Plaintiff’s FROG, Set One, No. 12.1, on the grounds of ambiguity is SUSTAINED. Optimum’s Response to Plaintiff’s E-FROG, Set One, No. 200.3 Optimum’s third supplemental response provides a hybrid answer that also raises the following objections: it calls for a legal conclusion, implicates the attorney work product privilege, and violates third-party privacy rights by disclosing their addresses and telephone numbers. ROA 172, p.9. Pursuant to the foregoing discussion, and considering Optimum’s failure to substantiate these objections, the objections on privacy, legal conclusion, and third party privacy grounds are OVERRULED.
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	However, because Optimum raises the attorney work product privilege but does not substantiate the claim, the Court is forced at this juncture to reserve ruling on this objection and to forego determining whether a further response is required until Optimum provides sufficient factual justification for these objections. Consequently, Optimum must provide sufficient facts substantiating its privilege objections to Plaintiff's E-FROG, Set One, No. 200.3. Optimum's Response to Plaintiff's E-FROG, Set One, No. 201.1 Optimum's third supplemental response provides a hybrid answer that also objects on the grounds that the request violates third-party privacy rights in addresses and telephone numbers. ROA 173, p.12. Pursuant to the foregoing, said objection is OVERRULED. Optimum's answer repeatedly refers to "prior document production," which "speak for themselves." ROA 173, pp. 12-13. The Court finds that Optimum's response is not code compliant. Consequently, Optimum must provide a verified, code compliant response to Plaintiff's E-FROG, Set One, No. 201.1, without objections. Optimum's Response to Plaintiff's E-FROG, Set One, No. 201.3 Optimum's third supplemental response provides a hybrid answer and objections on the following grounds: that it calls for legal conclusion; seeks information protected by the attorney work product privilege; violates the privacy interests of third parties in their address and telephone numbers; assumes facts; seeks irrelevant information not likely to lead to the discovery of admissible evidence; and that it is duplicative of Plaintiff's E-FROG, Set One, No. 201.3. ROA 173, p.17. Optimum fails to provide sufficient facts to substantiate its objections to Plaintiff's E-FROG, Set One, No. 201.3, on the grounds that it calls for a legal conclusion, violates third party privacy interests, assumes facts, and seeks irrelevant information; they are therefore OVERRULED.
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	However, because Optimum raises the attorney work product privilege but does not substantiate the claim, the Court is forced at this juncture to reserve ruling on this objection and to forego determining whether a further response is required until Optimum provides sufficient factual justification for its attorney work product objection. Consequently, Optimum must provide sufficient facts substantiating its privilege objections to Plaintiff's E-FROG, Set One, No. 201.3. Optimum's Response to Plaintiff's E-FROG, Set One, No. 201.6 Optimum's third supplementary response provides a hybrid answer that also objects on the grounds that the request violates third parties' protected privacy rights in their addresses and telephone numbers. ROA 173, p.19. That objection is OVERRULED for the reasons stated above. The Court finds that Optimum fails to provide a complete response to subsection (a) of the request and is therefore evasive and not code compliant. <i>See</i> ROA 173, p.19. Consequently, Optimum must provide a verified, code compliant response to Plaintiff's E-FROG, Set One, No. 201.6, without objections. Optimum's Response to Plaintiff's E-FROG, Set One, No. 201.7 Optimum's third supplemental response provides a non-compliant, hybrid answer and raises the following objections: that the request is vague and ambiguous as to the term "ADVERSE EMPLOYMENT ACTION" because there are multiple alleged actions raised by Plaintiff; that it presents an undue burden; that it implicates the protected privacy interests of third parties in their address and telephone numbers; and that it assumes facts not in evidence. ROA 173, p.21. For the reasons set forth above, Optimum's objections on the grounds of undue burden and third party privacy interests are invalid and OVERRULED. Because Optimum does not satisfy the factual showing to
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	substantiate its objection on the grounds of undue burden, it, too, is OVERRULED. Additionally, the Court finds that the term “ADVERSE EMPLOYMENT ACTION” is sufficiently defined and composed to include all adverse actions alleged in a complaint. <i>See</i> Jud. Council of Cal., Form DISC-002, p.2 (Rev. January 1, 2009). Consequently, Optimum’s objection on the grounds of ambiguity is OVERRULED. Lastly, the Court finds Optimum’s response to be non-compliant. It is evasive because it fails to address any and all ADVERSE EMPLOYMENT ACTIONS raised in the complaint. <i>See</i> ROA 173, p.21. Accordingly, Optimum must provide a verified, code compliant response to Plaintiff’s E-FROG, Set One, No. 201.7, without objections. Optimum’s Response to Plaintiff’s E-FROG, Set One, No. 206.3 Optimum’s first supplemental response provides a hybrid answer and objections on the grounds that the request violates the protected privacy interests of third parties in their contact information and is based on erroneous assumptions of fact. ROA 173, p.22. These objections are neither valid in this context nor substantiated; they are therefore OVERRULED. The Court finds that Optimum’s response is not code compliant. First, it is evasive in that it fails to provide the requested contact information. <i>See</i> ROA 173, p.22. Second, despite acknowledging that it has not provided a complete answer, it fails to specify the efforts made to date to obtain the required information. <i>Id.</i> Consequently, Optimum must provide a verified, code compliant response to Plaintiff’s E-FROG, Set One, No. 206.3, without objections. Optimum’s Response to Plaintiff’s E-FROG, Set One, No. 207.2 Optimum’s first supplemental response provides a hybrid answer and objections, arguing that the request imposes an undue burden and violates the protected privacy interests of third parties in their contact information. ROA 173, p.23. Optimum fails to make the required factual showing to
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		substantiate these objections; they are therefore OVERRULED. The Court finds that Optimum's response is incomplete and evasive. It both fails to provide the requested contact information requested and refers to other documents rather than summarizing their contents in a complete response. <i>See</i> ROA 173, p.24. Consequently, Optimum must provide a verified, code compliant response to Plaintiff's E-FROG, Set One, No. 207.2, without objections. Optimum's Response to Plaintiff's E-FROG, Set One, No. 209.2 Optimum's second supplemental response provides a hybrid answer that also objects on the grounds that the interrogatory is not reasonably calculated to lead to the discovery of admissible evidence and seeks information equally available to Plaintiff. ROA 173, p.25. Optimum fails to show how Plaintiff's E-FROG, Set One, No. 209.2, could not reasonably lead to the discovery of admissible evidence, or assist in evaluating the case, preparing for trial, or facilitating settlement. Consequently, Optimum's objection on the grounds of irrelevance is OVERRULED. Additionally, as discussed above, the fact that the information is also available to the propounding party is not a valid objection to a request for information regarding previous similar litigation. Optimum's objection on these grounds is therefore also OVERRULED. The Court finds that Optimum's response is incomplete and evasive. It fails to provide the requested contact information or to detail the efforts made to obtain the missing information. <i>See</i> ROA 173, p.26. Consequently, Optimum must provide a verified, code compliant response to Plaintiff's E-FROG, Set One, No. 209.2, without objections. Optimum's Response to Plaintiff's E-FROG, Set One, No. 211.1 Optimum's first supplemental response provides a hybrid
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	answer and objections on the following grounds: that the term “ADVERSE EMPLOYMENT ACTION” is so vague as to preclude an intelligent reply because Plaintiff alleges more than one; that it calls for legal conclusion; that it seeks information protected by the attorney work product privilege; and that it seeks premature disclosure of expert opinion in violation of California Code of Civil Procedure Sections 2034.210, 2034.220, and 2034.270. ROA 173, p.27. The Court finds that the term “ADVERSE EMPLOYMENT ACTION” is sufficiently defined to permit an intelligent reply that addresses every allegation meeting that definition. <i>See</i> ROA 51, p.19 (defining ‘adverse employment action’ “as <i>any</i> termination, suspension, demotion, reprimand, loss of pay, failure or refusal to hire, failure or refusal to promote, or other action or failure to act that adversely affects the employee’s rights or interests and which is alleged in the pleadings.”) (emphasis added). Optimum’s objection on the grounds of ambiguity is OVERRULED. That an interrogatory calls for legal conclusion, calls for speculation, or assumes facts not in evidence are not valid objections to form interrogatories that do not permit the propounding party to incorporate specific inquiries. Here, Plaintiff has made no changes to the form of inquiry. Optimum’s objections to Plaintiff’s E-FROG, Set One, No. 211.1, on these grounds are OVERRULED. Optimum’s objection on the grounds that the interrogatory seeks the premature disclosure of expert opinion is OVERRULED. As discussed above, responding parties have an obligation to answer as fully as the information available to them allows and detail the efforts made to obtain the information that would permit a comprehensive response. Optimum fails to explain why the requested information is beyond their knowledge, why a response would require an expert opinion to provide a complete answer, or the steps taken to secure a qualified expert. Notwithstanding the foregoing, because Optimum invokes the attorney work product privilege but does not substantiate the claim, the Court is forced at this juncture to
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	reserve ruling on this objection and forego determining whether a further response is required until Optimum provides sufficient factual justification for the privilege. Consequently, Optimum must provide a supplemental response that presents sufficient facts substantiating its attorney work-product privilege objection. Optimum's Response to Plaintiff's E-FROG, Set One, No. 216.1 Optimum's first supplemental response provides a hybrid answer and raises the following objections: that it implicates the protected privacy interests of third parties in their contact information; that it assumes that documents or other tangible things are necessary to support Optimum's denials or affirmative defenses; and that the information requested is readily available to or already in Plaintiff's possession, custody, or control. ROA 173, p.31. As discussed above, basic contact information of percipient witnesses is not protected. Optimum's third party privacy objection is therefore OVERRULED. That the interrogatory may or may not assume that documents are necessary to support a respondent's denials or defenses is not a ground to object to the interrogatory. Optimum's objection on these grounds is also OVERRULED. Optimum fails to demonstrate how the requested information is or could already be in the propounding party's possession, custody, or control. Optimum's conclusory objection on these grounds is OVERRULED. The court finds that Optimum's answer is incomplete and evasive because it fails to provide the requested contact information. <i>See</i> ROA 173, p.32. Consequently, Optimum must provide a verified, code compliant response to Plaintiff's E-FROG, Set One, No. 216.1, without objections. Good Cause re: Motions to Compel Further Responses to Requests for Production In addition to a declaration outlining the moving party's efforts to meet and confer in good faith to resolve the
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		underlying discovery disputes, California Code of Civil Procedure Section 2031.310 requires the party seeking to compel further responses to requests for production to “set forth specific facts showing good cause justifying the discovery sought by the demand.” Cal. Civ. Proc. Code § 2031.310(b)(1). To establish good cause, the moving party must satisfy the following requirements set out by the Second District Court of Appeal in <i>Williams v. Superior Court</i>: first, they “must identify a disputed fact that is of consequence in the action[;]” second, they must explain how either (i) “the discovery sought will tend in reason to prove or disprove that fact[,] or will “lead to other evidence that will tend to prove or disprove the fact.” <i>Williams v. Super. Ct.</i>, 187 Cal. Rptr. 3d 321, 325 (2015) (previously published at 236 Cal. App. 4th 1151); see <i>Calcor Space Facility, Inc. v. Super. Ct.</i>, 53 Cal. App. 4th 216, 224 (1997) (vacating an order compelling production where the moving party failed to present “specific facts relating to each category of materials sought to be produced;” offered “mere generalities” as justification for the production; and did not provide “focused, fact-specific justifications for [their] demands.”). a. Plaintiff’s PROD, Set One, No. 66, to Optimum. Plaintiff’s PROD, Set One, No. 66 to Optimum demands “[a]ll documents evidencing, referring to, or reflecting the identity of your owner(s), partner(s), shareholder(s), member(s), officer(s) and/or director(s) from August 1, 2023, to the present.” ROA 57, p.28. As justification to compel a further response, Plaintiff identifies liability for punitive damages as a disputed fact of consequence. ROA 57, p.29. Plaintiff fails, however, to show how disclosure of the identities of those identified in the request will, in reason, tend to prove or disprove their liability. Thus, Plaintiff has not shown good cause to compel a further response to Plaintiff’s RFP, Set One, No. 66, to Optimum. Plaintiff’s PROD, Set One, Nos. 22-26, 54-56, 62, 64, 65, 67, 74, and 75, to Optimum. Pursuant to the foregoing, and having considered both
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	parties' arguments, the Court finds that Plaintiff has satisfied good cause to compel Optimum's further responses to Plaintiff's PROD, Set One, Nos. 22-26, 54-56, 62, 64, 65, 67, 68, 74, and 75. Code Compliant Responses to Requests for Production As a preliminary matter, the Court addresses Optimum's mislabeled responses to Plaintiff's PROD, Set One, Nos. 54 and 55. Having reviewed the record before the Court, the Court finds that Optimum's errors are not detrimental to their responses and that the misnumbered responses are responsive to Plaintiff's intended requests. Responses to requests for production must take the form of either (i) an agreement to comply, (ii) a representation of inability to comply, or (iii) objections. Cal. Civ. Proc Code § 2031.210(a). An agreement to comply is a statement that the party will comply with the demand by the specified date. Cal. Civ. Proc. Code § 2031.210(a). The response must be specific as to what is agreed and must state both: (i) that the production or inspection will be permitted in whole or in part on a specified date; and (ii) that the items demanded that are in the responding party's custody or control, which are not subject to objections, will be produced. Cal. Civ. Proc. Code § 2031.220. Compliance requires that the responding party produce the documents specified in the demand on the date specified, and identify any documents produced with the specific request number to which they respond. Cal. Civ. Proc. Code § 2031.280(a)(b). A statement that the responding party is unable to comply with the demand for production must: (i) affirm that the responding party conducted a diligent search and a reasonable inquiry to locate the demanded item; and (ii) state the reason the party is unable to comply. Cal. Civ. Proc. Code § 2031.230. Acceptable reasons include that "the particular item or category has never existed, has been destroyed, has been lost, misplaced, or stolen, or has never been, or is no longer, in the possession, custody, or control of the responding party. <i>Id.</i> If the responding party either knows or believes that another party has possession,
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	custody, or control of the demanded item, the responding party must state the name and address of said party. <i>Id.</i> A responding party who objects to any item or category requested for production, either in whole or in part, must: (i) identify with particularity the specific document or information demanded to which the responding party objects; and (ii) set forth the specific ground for objection. Cal. Civ. Proc. Code § 2031.240(b). If only part of an item or category of a demand is objectionable, the responding party must provide either a statement of compliance or inability to comply as to the remainder. Cal. Civ. Proc. Code § 2031.040(a). The discussions regarding objections to interrogatories on the grounds that a request is vague and ambiguous, assumes facts not in evidence, is irrelevant or not reasonably calculated to lead to the discovery of admissible evidence, implicates a protected privacy interest, seeks public information equally available to the propounding party, or presents an undue burden are incorporated here for reference and brevity. To sustain an objection on the grounds that a discovery request is cumulative or duplicative, the opposing party must present sufficient facts for the court to determine that either (i) “[t]he discovery sought is <i>unreasonably</i> cumulative or duplicative, or is obtainable from some other source that is more convenient, less burdensome or less expensive”; or (ii) that “[t]he selected method of discovery is unduly burdensome or expensive, taking into account the needs of the case, the amount in controversy, and the importance of the issues at stake in the litigation.” Cal. Civ. Proc. Code § 2019.030. Additionally, objections on the grounds that a request seeks confidential commercial information are not valid, nor is proprietary information protected on privacy grounds. <i>Nativi v. Deutsche Bank Nat’l Trust Co.</i> 223 Cal. App. 4th 261, 313-14 (2014). However, California Code of Civil Procedure Section 2031.060 permits courts to direct that “a trade secret or other confidential . . . commercial information not be disclosed, or be disclosed only to specified persons or in a
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		specified way” upon a party's motion accompanied by a meet and confer declaration, and a showing of good cause. Cal. Civ. Proc. Code § 2031.060(a), (b)(5). The same factual information and documentary requirements apply to the Trade Secrets privilege under California Evidence Code Section 1060. Cal. Evid. Code § 1060; <i>Stadish v. Super. Ct.</i>, 71 Cal. App. 4th 1130, 1141 (1999) (finding that a party objecting to the production of documents on the basis of trade secret privilege must do so in accordance with California Code of Civil Procedure Section [2031.300(a)]). The party asserting the trade secret privilege bears the burden of proving it is entitled to that privilege and must show (i) the matter concerns information from which the respondent derives economic actual or potential economic value; (ii) that the information sought is, in fact, a secret or not widely known; and (iii) that the owner has attempted to keep it secret. <i>Amgen Inc. v. Cal. Corr. Health Services</i>, 47 Cal. App. 5th 716, 734 (2020); Cal. Civ. Proc. Code § 3426.1(d). California Evidence Code Section 1157 provides that “[n]either the proceedings nor the records of organized committees of <i>medical . . . staffs</i>, or of a peer review body . . . having the responsibility of evaluation and improvement of the quality of care rendered in the hospital . . . shall be subject to discovery.” Cal. Evid. Code § 1157. The privilege afforded to peer investigations conducted by staff committees is, in effect, equivalent to the attorney client privilege in that there are no exceptions to the privilege, even where requests are narrowly drawn. <i>Cnty of Los Angeles v. Super. Ct.</i>, 139 Cal. App. 4th 8 12-13 (2006). Despite Optimum’s multiple, unsupported assertions to the contrary, aside from the specific protections afforded under Section 1157, there is no recognized “internal investigation privilege.” <i>See generally</i> ROA 57. Thus, if a responding party wishes to make a privilege objection to a request for documents concerning internal investigations, and if those documents do not fall under the auspices of Section 1157, then the responding party must make an appropriate attorney-client or attorney work product privilege
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	objection. Pursuant to California Code of Civil Procedure Section 2031.240(c), “[i]f an objection is based on a claim of privilege . . . the response <i>shall</i> provide sufficient factual information for other parties to evaluate the merits of that claim, including, if necessary, a privilege log.” Cal. Civ. Proc. Code § 2031.240(c) (emphasis added). “The purpose of a ‘privilege log’ is to provide a specific factual description of documents in aid of substantiating a claim of privilege in connection with a request for document production.” <i>Hernandez v. Super. Court</i>, 112 Cal. App. 4th 285, 292 (2003). It is the initial burden of the party asserting the privilege to demonstrate that the requested communication falls within the privilege. <i>Wellpoint Health Networks, Inc. v. Super. Court</i>, 59 Cal. App. 4th 110, 123 (1997). Boilerplate privilege objections, when timely served, are sufficient to preserve them despite their other substantive flaws. <i>See Catalina Island Yacht Club v. Super. Ct.</i>, 242 Cal. App. 4th 1116, 1129 (2015). Accordingly, if a party responding to an inspection demand <i>timely</i> serves a response asserting an objection based on privilege, the trial court lacks authority to order the objection waived even if the responding party fails to serve a privilege log, serves an untimely privilege log, or serves a privilege log that fails either to adequately identify the documents to which the objection purportedly applies or provide sufficient factual information for the propounding party to evaluate the objection. <i>People ex rel. Lockyer v. Super. Ct.</i>, 122 Cal. App. 4th 1060, 1074-75 (2004) (finding “[b]ecause the [responding parties] timely objected on the grounds of privilege, they preserved these objections, regardless of whether the objections were sufficiently detailed in their response or privilege log and the court, as a matter of law, could not find that they had waived these privileges”). The appropriate remedy if the response or a privilege log fails to provide sufficient information to allow the court to rule on the merits is to order the responding party to serve a privilege log and impose sanctions for the deficient
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	response. <i>Catalina Island Yacht Club, supra</i> at 1127; <i>see also</i> Cal. Civ. Proc. Code § 2031.310(h). a. Optimum’s Responses to Plaintiff’s PROD, Set One, Nos. 23, 25, 26, 54-56, 67, and 74 For brevity and efficiency, the Court addresses the above-mentioned responses together, as they are treated similarly. All of Optimum’s responses to these requests raised multiple objections, in addition to either non-compliant agreements to comply or non-compliant statements of inability to comply. <i>See generally</i> ROA 179. Importantly, they all raise objections on the grounds that the requests seek information protected from disclosure by the attorney-client privilege, the attorney work product privilege, or the litigation privilege. <i>Id.</i> The Court finds that Optimum’s objections to all of the responses listed above are not supported by the requisite factual showing to substantiate them. All but the attorney-client and attorney work product privilege objections are therefore OVERRULED. Because Optimum raises the attorney-client and attorney work product privileges, but does not substantiate either claim, the Court is forced at this juncture to reserve ruling on Optimum’s objections to these requests and to forego determining whether further responses are required until Optimum provides sufficient factual justification for these objections. Consequently, Optimum must provide supplemental responses that provide sufficient facts substantiating its privilege objections to Plaintiff’s PROD, Set One, Nos. 23, 25, 26, 54-56, 67, and 74, preferably in a privilege log.. b. Optimum’s Response to Plaintiff’s PROD, Set One, No. 22 Optimum’s third supplemental response objects on the grounds that the request is overbroad in time and scope and presents an undue burden. ROA 179, p.10. Optimum argues that a complete response would require entire court dockets, all pleadings, filings, and discovery materials, deposition transcripts, and every email correspondence between parties to past legal actions, and would therefore
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		present a disproportionate burden to the desired result. <i>Id.</i> The Court finds that Optimum has made a sufficient factual showing that Plaintiff's PROD, Set One, No. 22, as worded, is overbroad in scope and presents an undue burden. Optimum's objection is therefore SUSTAINED. Optimum's Response to Plaintiff's PROD, Set One, No. 24. Optimum's third supplemental response raises an objection on the grounds that the request is overbroad in time and scope and presents an undue burden. ROA 179, pp. 14-15. Optimum argues that a complete response would require entire court dockets, all pleadings, filings, and discovery materials, deposition transcripts, and every email correspondence between parties to past legal actions, and would present a disproportionate burden to the desired result. The Court finds that Optimum has made a sufficient factual showing that Plaintiff's PROD, Set One, No. 24, as worded, is overbroad in scope and presents an undue burden. Optimum's objection is therefore SUSTAINED. Optimum's Response to Plaintiff's PROD, Set One, No. 62 Optimum's second supplemental response objects on the grounds that the request is overbroad in time and scope and presents an undue burden. ROA 179, p.42. Optimum argues that, as worded, "the request would [] call for every work email that Carly Burns has ever sent for any reason because her email signature block references her job title, Director of Human Resources." <i>Id.</i> The Court finds that Optimum has made a sufficient factual showing that Plaintiff's PROD, Set One, No. 62, as worded, is overbroad in scope and presents an undue burden. Optimum's objection is therefore SUSTAINED. Optimum's Response to Plaintiff's PROD, Set One, No. 64 Optimum's second supplemental response objects on the grounds that the request is overbroad in time and scope and presents an undue burden. ROA 179, p.44. Optimum argues that, as worded, "the request would [] call for every
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	work email that Jeff Weber has ever sent for any reason because his email signature block references his job title, Director of Community Management.” <i>Id.</i> The Court finds that Optimum has made a sufficient factual showing that Plaintiff’s PROD, Set One, No. 64, as worded, is overbroad in scope and presents an undue burden. Optimum’s objection is therefore SUSTAINED. Optimum’s Response to Plaintiff’s PROD, Set One, No. 65 Optimum’s second supplemental response objects on the grounds that the request is overbroad in time and scope and presents an undue burden. ROA 179, p.45. Optimum argues that, as worded, “the request would [] call for every work email that Tracie Blakenship has ever sent for any reason because her email signature block references her job title, VP of Community Management.” <i>Id.</i> at 45-46. The Court finds that Optimum has made a sufficient factual showing that Plaintiff’s PROD, Set One, No. 65, as worded, is overbroad in scope and presents an undue burden. Optimum’s objection is therefore SUSTAINED. Optimum’s Response to Plaintiff’s PROD, Set One, No. 68 Optimum’s third supplemental response to Plaintiff’s PROD, Set One, No. 68, offers a noncompliant response that also objects on the following grounds: that the request is vague and ambiguous as to the terms “communications” and “you”; that it presents an undue burden; that it seeks information that implicates the right of privacy; and that it seeks trade secret information. ROA 179, p.49. Optimum does not make the required factual showing to substantiate these objections; therefore, they are all OVERRULED. Additionally, Optimum’s response is not compliant. It neither provides an agreement to comply nor a statement of inability to comply that complies with the statutory guidelines. <i>See</i> ROA 179, p.49. Consequently, Optimum must provide a verified, code compliant response to Plaintiff’s PROD, Set One, No. 68, without objections. Optimum’s Response to Plaintiff’s PROD, Set One, No. 75 Optimum’s third supplemental response raises the
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		following objections: that it is vague and ambiguous as to the terms “communications” and “you”; that it is overbroad in time and scope and thus presents an undue burden; that it violates protected privacy interests; and that it is duplicative of Plaintiff’s PROD, Set One, No. 68. ROA 179, p.57. The Court finds that Optimum’s objections are not supported by sufficient facts to substantiate any of them. They are therefore OVERRULED. Optimum’s statement of inability to comply fails to assert whether the particular item or category has ever existed; been destroyed, lost, misplaced, or stolen; or has ever been in Optimum’s possession, custody, or control. <i>Compare</i> Cal. Civ. Proc. Code § 2031.230 <i>with</i> ROA 179, p.59 (stating “Defendant is <i>not</i> in possession, custody, or control of any additional non-privileged responsive documents.”) (emphasis added). Consequently, Optimum must provide a verified, code compliant response to Plaintiff’s PROD, Set One, No. 75, without objections. Sanctions re: Motions to Compel Initial Responses to Discovery Requests California Code of Civil Procedure Sections 2030.290 and 2031.300 require the imposition of mandatory monetary sanctions for a responding party’s failure to timely provide verified, code compliant responses to discovery requests, “unless [the court] finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” Cal. Civ. Proc. Code §§ 2030.290(c), 2031.300(c). The term “substantial justification” means “a justification that ‘is clearly reasonable because it is well grounded in both law and fact.’” <i>In re Marriage of Moore</i>, 102 Cal. App. 5th 1275, 1287 (2024) (quoting <i>Doe v. U.S. Swimming, Inc.</i>, 200 Cal. App. 4th 1424, 1434, (2011)). To avoid sanctions, an unsuccessful opponent to a motion to compel may show “substantial justification” for his or her position—i.e., a rational basis to conclude that the party's failure to fulfill its discovery obligations was
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	justified. <i>Pollock v. Super. Ct.</i>, 93 Cal. App. 5th 1348, 1358 (2023) (citing <i>Foothill Properties v. Lyon/Copley Corona Associates</i>, 46 Cal. App. 4th 1542, 1557 (1996)). The Court “must make an explicit finding this exception exists,” however, “the court <i>need not</i> make an explicit finding the exception does not exist” <i>Parker v. Wolters Kluwer U.S., Inc.</i>, 149 Cal. App. 4th 285, 294 (2007) (emphasis added). Here, ADP does not offer, and the Court does not find, substantial justification for ADP’s failure to serve timely responses to Plaintiff’s PROD, FROG, or E-FROG, Set One. Further, the Court finds no reason why the imposition of monetary discovery sanctions upon ADP for this failure would result in any injustice to ADP. Thus, sanctions are proper. Sanctions re: Motions to Compel Further Responses to Requests for Production California Code of Civil Procedure Sections 2030.300 and 2031.310 mandate that courts impose monetary discovery sanctions against any party who unsuccessfully makes or opposes a motion to compel further responses to a discovery demand, absent a finding that the party “subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” Cal. Civ. Proc. Code §§ 2030.300(d), 2031.310(h). The discussion above regarding substantial justification re: motions to compel <i>initial</i> responses to discovery demands is incorporated here for brevity. Here, Optimum does not offer, and the Court does not find, substantial justification for Optimum’s failure to serve code compliant responses to Plaintiff’s PROD, FROG, or E-FROG, Set One. Further, the Court finds no reason why the imposition of monetary discovery sanctions upon Optimum for this failure would result in any injustice to Optimum. Thus, sanctions are proper. Proper Allocation of Monetary Discovery Sanctions When discovery misuse is clearly attributable to one party, courts should generally sanction only that party. If the <i>client</i> engaged in the misconduct, for example, by refusing to
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		answer discovery, hiding documents, or failing to appear for deposition, then sanctions should be imposed upon them. <i>See Ghanooni v. Super Shuttle</i>, 20 Cal. App. 4th 256, 261 (1993) (finding no liability for counsel for monetary sanctions where client refused to submit to x-rays and attorney's declarations show that the attorney attempted to convince client to comply). If the <i>attorney</i> is responsible, for instance, by instructing a client not to answer without substantial justification, failing to meet and confer in good faith, or failing to provide timely responses, the sanction can be imposed directly on the attorney. <i>See generally Ghanooni, supra</i>, 20 Cal. App. 4th at 260-261. If the Court finds that both are responsible, sanctions can be imposed jointly and severally. <i>See generally Cornerstone Realty Advisors, LLC v. Summit Healthcare REIT, Inc.</i>, 56 Cal. App. 5th 771, 799 (2020). Here, the Court finds that ADP's failure to serve timely responses to Plaintiff's PROD, FROG, and E-FROG, Set One, is not attributable to client misconduct. Therefore, sanctions are appropriate upon ADP's counsel, Jackson Lewis, P.C., only. Additionally, the Court finds that Optimum's failure to serve code compliant responses to Plaintiff's PROD, FROG, and E-FROG, Set One, is also not attributable to client misconduct. Therefore, sanctions are appropriate upon Optimum's counsel, Jackson Lewis, P.C., only. Determining the Appropriate Amount of Monetary Sanctions Three principles guide the award and amount of attorney's fees and costs imposed as a discovery sanction. <i>See Cornerstone, supra</i>, 56 Cal. App. 5th at 790-91 (compulsion, causation, and reasonableness). "The amount of monetary sanctions is limited to the 'reasonable expenses, including attorney's fees' that a party incurred as a result of the discovery abuse." <i>Cornerstone, supra</i>, 56 Cal. App. 5th at 791 (quoting Cal. Civ. Proc. Code § 2023.030(a)). The principle of reasonableness means a trial court has discretion to reduce the amount of fees and costs
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		requested as a discovery sanction to reach a reasonable award. <i>Id.</i>, (citing <i>Parker, supra</i>, 149 Cal. App. 4th at 294). “After a motion to compel discovery has been filed, further expenses incurred in meeting and conferring on the discovery dispute, whether it be through private mediation or normal channels of communication, are not compensable as discovery sanctions.” <i>Marriage of Moore, supra</i>, 102 Cal. App. 5th at 1301 (emphasis added). Pursuant to the foregoing, and after considering Plaintiff’s reasonable calculation of expenses incurred in bringing these motions, the inordinate amount of time required of the Court to address the cavalcade of Optimum’s nuisance objections, and Defendant’s counsel’s gamesmanship, the Court finds that Plaintiff is entitled to a reasonable award of monetary discover sanctions in the amount of \$40,419.02, which is reduced from the total amount requested in proportion to the number of individual disputed requests that Defendant successfully opposed. Ruling Accordingly, the Court issues the following orders: The Court GRANTS IN PART Plaintiff’s Motion to Compel Optimum’s Further Responses to Form Interrogatories, Set One, and Employment Form Interrogatories, Set One, and Sanctions (ROA 50), and ORDERS Optimum to submit facts sufficient to substantiate its claims of attorney client and attorney work product privilege to Plaintiff’s Form Interrogatories—Employment, Set One, Numbers 200.3, 201.3, and 211.1, and provide verified, code compliant responses, without objections, to Plaintiff’s Form Interrogatories—General, Set One, No. 1.1, and Form Interrogatories—Employment, Set One, Nos. 201.1, 201.6, 201.7, 206.3, 207.2, 209.2, and 216.1, no later than (10) days after receiving notice of this Order. The Court GRANTS IN PART Plaintiff’s Motion to Compel Optimum’s Further Responses to Requests for Production, Set One, Sanctions (ROA 59); and ORDERS Optimum to submit a privilege log that provides facts sufficient to substantiate its claims of attorney client and attorney work
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		product privilege to Plaintiff's Requests for Production, Set One, Numbers 23, 25, 26, 54-56, 67, and 74, and provide verified, code compliant responses and responsive documents, without objections, to Plaintiff's Requests for Production, Set One, Nos. 68 and 75, no later than ten (10) days after receiving notice of this Order. The Court GRANTS Plaintiff's Motion to Compel ADP's Responses to Form Interrogatories, Set One, and Employment Form Interrogatories, Set One (ROA 95), DENIES ADP's Motion for Relief from Waiver of Discovery Objections (ROA 161), and ORDERS ADP to provide verified, code compliant responses, without objections, to Plaintiff's Form Interrogatories, Set One, and Employment Form Interrogatories, Set One, no later than ten (10) days after receiving notice of this Order. The Court GRANTS Plaintiff's Motion to Compel ADP's Responses to Requests for Production, Set One, and Sanctions (ROA 100); DENIES ADP's Motion for Relief from Waiver of Discovery Objections (ROA 161), and ORDERS ADP to provide verified, code compliant responses and responsive documents, without objections, to Plaintiff's Requests for Production, Set One, no later than ten (10) days after receiving notice of this Order. Finally, the Court IMPOSES monetary discovery sanctions upon Defendants' counsel, Jackson Lewis, P.C, in the total collective amount of \$40,419.02, due and payable to Plaintiff's counsel, Mozaffari Law, P.C., no later than sixty (60) days after receiving notice of this order. Plaintiff shall give notice.
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